

Peter Derbins
PO BOX 2421
PONCHATOULA, LA 70454-9521
LAL156822 417784

2/25/2021

PRIVACY STATEMENT

ASI values its relationship with you and recognizes that customer trust is a fundamental element to any successful relationship. ASI will protect your privacy and the personal information we use to provide you with superior products and services. We want you to understand how we protect the confidentiality of all personal information obtained in the course of doing business with you. Our pledge is to protect your privacy whether this information is received by mail, telephone, Internet, or in person.

Summary

This section summarizes our privacy practices. For more detail, please read the entire privacy policy.

- We gather information from you, your transactions with us, and outside sources.
- We use your information only to conduct our business and provide insurance to you.
- We will share your information with your selected agent or broker.
- We will not share your information with other companies for their marketing purposes without your consent.
- We limit access to your information and use safeguards to help protect it.
- You may review and correct your information.

What information do you collect about me?

We collect information about you to quote and service your insurance policy. This is called **"Nonpublic Personal Information"** if it identifies you and is not available to the public. Depending on the product, we collect this information from some or all of the following sources. We've provided a few examples for each source, but not all may apply to you.

- **Application Information:** You provide this on your application, through your agent or broker, by phone, or online. We may also obtain it from directories and other outside sources. It includes your name, street and e-mail addresses, phone number, driver's license number, Social Security number, date of birth, gender, marital status, type of vehicle, and information about other drivers.
- **Consumer Report Information:** We obtain this from consumer reporting agencies. It includes your driving record, claims history with other insurers, and credit report information. The information is kept by the consumer reporting agencies and disclosed by them to others as permitted by law.
- **Transaction Information:** This is information about your transactions with us, our affiliates, or others. It includes your insurance coverages, limits and rates, and payment and claims history. It also includes information that we require for billing and payment.
- **Web Site Information:** This information is unique to Internet transactions. It includes the Web site that linked you to ours, your computer operating system, and the pages you viewed on our site. Some Web sites, including ours, may also store "cookies" on your computer. Cookies collect technical data, like your Internet protocol (IP) address, operating system, and session ID. They can also save certain information entered by you. Some of our Web sites contain more information about our Web site privacy practices. Please read it when using the sites.

Who might get information about me from you?

We will share information about you only as permitted by law. We will not share your Nonpublic Personal Information with other companies for their marketing purposes without your consent. There is no need to "opt out" or tell us not to do this.

Disclosures include those that we feel are required to provide insurance claims or customer service, prevent fraud, perform research or comply with the law. Recipients include, for example, our family of insurance companies, claims representatives, service providers, consumer reporting agencies, insurance agents and brokers, law enforcement, courts and government agencies. These parties may disclose the information to others as permitted by law. For example, Consumer reporting agencies may disclose Transaction Information received from us to other insurance companies with which you do business. Where permitted by law, we may also disclose Application or Transaction Information to service providers that help us market our products. These service providers may include financial institutions with which we have joint marketing agreements.

How do you protect my information?

We restrict access to your Nonpublic Personal Information to our employees and others who we feel must use it to provide our products and services. Their use of the information is limited by law, our employee code of conduct, and written agreements where appropriate. We also maintain physical, electronic and procedural safeguards to protect your information.

How can I review and correct information you have about me?

To review information we have about you, send a written request to ASI Privacy Compliance, P.O. Box 33018, St. Petersburg, FL 33733-8018. You may also call us directly at (866) 274-8765. You must describe the kind of information you want to review and state that your request is in response to this Privacy Policy. Include your full name, mailing address, and policy number (if applicable). Within 30 business days, we will describe what is available and how you may request corrections.

We will also name anyone we show as having received the information within two years prior to your request. Finally, we will identify the companies that have provided Consumer Report Information about you.

You may review the information at our offices or receive a copy of it for a fee to cover our costs. We will not provide information that we feel is privileged, such as information about insurance claims or lawsuits.

To correct information about you, send a written request as described above, explaining your desired correction. Within 30 business days, we will either make the requested correction or tell you why we will not. We cannot correct Consumer Report Information, such as your credit report. To do this, you must contact the consumer reporting agency that provided it.

If we make a requested correction, we will notify you in writing. We will also notify anyone named by you who may have received the information within the previous two years. If required by law, we will also notify others who may have given it to or received it from us. If we refuse to make the requested correction, you may file with us a concise written statement about why you object, including the information you think is correct. Your statement will then become part of your file. It will be sent to the same persons to whom we would send a copy of any correction or change.

This notice is being provided on behalf of ASI and its affiliates. ASI functions as an insurance group with multiple companies under a common umbrella. The Progressive Corporation holds a controlling interest in ARX Holding Corp.

American Strategic Insurance Corp.

ASI Assurance Corp.

ASI Preferred Insurance Corp.

ASI Select Insurance Corp.

Progressive Property Insurance Company

ASI Select Auto Insurance Corp

ASI Lloyds

ASI Services, Inc.

ASI Home Insurance Corp.

Sunshine Security Insurance Agency, Inc.

Important Notice: Insured's Option to Rerun Credit

At the time you applied for your ASI policy, we obtained your credit-based insurance score and based your premium partly on that information.

We do not automatically reorder your credit reports when your policy renews. However, once every twelve months you may request that we rerun your credit-based insurance score (using the current information available at the time of your request) and adjust your premium based on this reevaluation. This means you could see either a higher or a lower premium based on the new credit reports. Please speak with your agent about how your premium could be impacted and whether or not you would like us to reorder your reports.

Please keep in mind that because ASI is not assessing credit-worthiness, the information we consider from credit reports is not the same as that considered by a financial institution. For example, credit report information that would lead a bank to offer you a lower interest rate on a loan will not necessarily lower your insurance premium.

To request a reorder, simply contact your agent and advise them you would like us to rerun your credit-based insurance score. For your convenience, your agent's contact information is located in the agent box on the first page of your Homeowners Declaration Page.

**IMPORTANT INFORMATION REQUIRED BY THE LOUISIANA DEPARTMENT OF
INSURANCE**

**HOMEOWNERS INSURANCE POLICY COVERAGE
DISCLOSURE SUMMARY**

This form is promulgated pursuant to LA R.S. 22:1332

THIS IS ONLY A SUMMARY OF YOUR COVERAGE AND DOES NOT AMEND, EXTEND, OR ALTER THE COVERAGES OR ANY OTHER PROVISIONS CONTAINED IN YOUR POLICY. INSURANCE IS A CONTRACT. THE LANGUAGE IN YOUR POLICY CONTROLS YOUR LEGAL RIGHTS AND OBLIGATIONS.

****READ YOUR INSURANCE POLICY FOR COMPLETE POLICY TERMS AND
CONDITIONS****

COVERAGE(S) FOR WHICH PREMIUM WAS PAID

Coverage A - Dwelling	\$480,000
Coverage B - Other Structures	\$48,000
Coverage C - Personal Property	\$240,000
Coverage D - Loss of Use	\$96,000
Coverage E - Personal Liability	\$500,000
Coverage F - Medical Payments to Others	\$5,000

Deductibles

This policy sets forth certain deductibles that will be applied to claims for damages. When applicable, a deductible will be subtracted from your total claim and you will be paid the balance subject to applicable coverage limits.

- You may be able to reduce your premium by increasing your deductible. Contact your producer (agent) or insurer for details.

If you file a claim that does not exceed the policy deductible and that does not result in payment either to you or on your behalf, that claim will be used to increase the cost of your policy's premium in the future or as part of the basis for cancellation of your policy.

NOTICE: This policy does set forth a separate deductible for covered losses caused by hurricane as defined in the policy. Renters Protection Policies do not set forth a separate deductible for covered losses caused by hurricane.

Separate Deductible Example - Hurricane, Wind or Named Storm Damage:

If applicable, the following illustrates how a separate deductible applying to hurricane, wind or named storm damage is applied under your policy:

If the total insured value of the dwelling or Coverage A is \$200,000.00 and you have a 2% hurricane deductible, then your hurricane deductible would be 2% of \$200,000 which is \$4,000 ($00.02 \times \$200,000.00 = \$4,000.00$).

Losses:

Coverage A - Dwelling	\$15,000
Coverage B - Other Structures	\$2,500
Coverage C - Personal Property	\$3,000
Coverage D - Loss of Use	\$2,000
Total Covered Loss from Hurricane	\$22,500
Minus the 2% Hurricane Deductible	(\$4,000)
Your Total Claim Payment	\$18,500

TO SEE EXACTLY HOW YOUR SEPARATE HURRICANE , WIND OR NAMED STORM DEDUCTIBLE WILL APPLY, PLEASE REFER TO YOUR POLICY.

Limitations or Exclusions under this Policy:

FLOOD - Flood damage is not covered, regardless of how caused, when flood is the peril that causes the loss. Flood water includes but is not limited to storm surge, waves, tidal water, overflow of a body of water, whether driven by wind or not.

Flood Insurance may be available through The National Flood Insurance Program (NFIP). NFIP flood insurance may provide coverage for damage to your dwelling and/or contents subject to the coverage limits and terms of the policy.

Excess Flood Insurance may be available under a separate policy from this or another insurer if the amount of the primary flood insurance is not enough to cover the value of your property.

- You may contact your producer (agent) or insured for more information on the NFIP and excess flood insurance.

MOLD - Damage caused solely by mold is not covered under this policy.

****FOR ALL OTHER LIMITATIONS OR EXCLUSIONS REFER TO YOUR POLICY
FOR COMPLETE DETAILS ON TERMS AND PROVISIONS****

Claims Filing Process

There may be time limitations for filing a claim and filing of a satisfactory proof of loss. There may also be time limitations for repairing and replacing damaged property that could cause you to not recover the replacement cost for the insured loss of your property, if applicable.

Payment of Claims

Depending on the terms of the insurance policy, some losses may be based on actual cash value (ACV) and other losses based on replacement cost value (RC).

- **ACV** is the amount needed to repair or replace the damaged or destroyed property, minus the depreciation.
- **RC** involves the initial payment of actual cash value (ACV) of the loss, and the subsequent payment of the additional amount that is actually and necessarily expended to repair or replace the damaged or destroyed property.

****Refer to your policy for the terms and conditions describing how a particular loss is to be paid.****

Payment and Adjustment of Claims

Pursuant to La R.S. 22:1892 and 22:1973, except in the case of catastrophic loss, the insurer shall initiate loss adjustment of a property damage claim and/or a claim for reasonable medical expenses within fourteen (14) days after notification of loss by the claimant.

In the case of **catastrophic loss**, the insurer shall initiate loss adjustment of a property damage claim within thirty (30) days after notification of loss by the claimant unless the Commissioner of Insurance promulgates a rule to extend the time period for initiating a loss adjustment for damages arising from a presidentially declared emergency or disaster

or a gubernatorially declared emergency or disaster for up to an additional thirty (30) days. Thereafter, one additional extension of the period of time for initiating a loss adjustment may be allowed by the Commissioner of Insurance if approved by the Senate Committee on Insurance and the House Committee on Insurance.

All insurers shall make a written offer to settle any property damage claim, including a third-party claim, within thirty (30) days after the receipt of satisfactory proof of loss of that claim.

Failure to make such payment within thirty (30) days after receipt of such satisfactory written proofs and demand thereof or failure to make a written offer to settle any property damage claim, including a third-party claim, within thirty (30) days after receipt of a satisfactory proof of loss of that claim may result in a late penalty against the insurer in addition to the payment of the claim.

If the insurer is found to be arbitrary, capricious, or without probable cause in settling any property damage claim, the insurer must pay the insured, in addition to the amount of the loss, fifty percent (50%) damages on the amount found to be due from the insurer to the insured, or one thousand dollars (\$1,000.00), whichever is greater, as well as attorney fees and costs, if applicable.

Reduction in Premium for Improvements or Modifications to Property:

Certain Improvements or modifications to your property, such as adding storm shutters, modifying the roof design, and improving the roof covering, may reduce your premium. Contact your insurance provider or insurer for complete details on qualifying improvements or modifications. For further guidance and assistance, see Regulation 94 - Premium Adjustments for Compliance with Building Codes and Damage Mitigation, found at LAC 37: XIII. Chapter 127.

EFFECTIVE: 05/30/2020

ASI UNDERWRITERS
P.O. Box 33018
St. Petersburg, FL 33733-8018

PROGRESSIVE
HOME

Premium Notice

PETER DERBINS AND KATIE DERBINS
PO BOX 2421
PONCHATOU LA, LA 70454-9521

Agent ID: 417784
Jackson-Vaughan Agency, Inc
PO Box 770
Ponchatoula, LA 70454
(985)386-3511

Policy Type: Homeowners
Policy Period: 02/26/2021
Policy Number: LAL156822
Property Address:
40072 DRUDE RD PONCHATOU LA, LA 70454-6431

Notice Date: 2/25/2021

Dear Policyholder,

According to our records, a payment is due on your policy. To maintain your coverage, please pay the minimum amount due shown below.

As a reminder, you can save money by paying the total amount due and avoiding the service fees included with each installment payment.

If you've already made this payment, please contact your agent to verify that it has been posted to your account. For your convenience, your agent's contact information is listed above.

If the amount due shown below is \$0.00, please disregard this notice.

Thanks for choosing Progressive.

Payor: Assurance Financial Group LLC
9029 JEFFERSON HWY
STE 100
BATON ROUGE, LA 70809

Loan #: 20143924C1X

Make Checks Payable and Mail To:

ASI
P.O. Box 33018
St. Petersburg, FL 33733-8018

If you would like to pay online, please visit:
<https://My.ASIPolicy.com>

DETACH HERE AND RETURN BOTTOM PORTION WITH YOUR PAYMENT TO ASI IN ENVELOPE PROVIDED

Payment Choices Available:

Full Pay: \$1,746.00

This amount reflects a paid in full discount. If you would like to choose a payment plan, please contact your agent. However, your overall premium may increase and you may be subject to additional pay plan fees.



Policy Number:

LAL156822

Insured:

PETER DERBINS AND KATIE DERBINS

Agent:

Jackson-Vaughan Agency, Inc

Total Amount Due:

\$1,746.00

Due Date:

02/26/2021

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Homeowners Declaration Page

Named Insured:

PETER DERBINS AND KATIE DERBINS
PO BOX 2421
PONCHATOULA, LA 70454-9521

Effective Date of This Transaction: 2/26/2021

Activity of This Transaction: New Business

Residence Premises:

40072 DRUDE RD
PONCHATOULA, LA 70454-6431

Total Policy Premium: \$1,746
Policy Number: LAL156822

Agent:

Jackson-Vaughan Agency, Inc
PO Box 770
Ponchatoula, LA 70454

Agent Code: 417784
For Policy Service, Call: (985)386-3511
To File a Claim, Call: 866 274-5677

Policy Period: From: 02/26/2021 To: 02/26/2022
(At 12:01 AM Standard Time at the residence premises)

Plan Type: HOH

Coverage at the residence premises is provided only where a limit of liability is shown or a premium is stated.

Coverages and Limits of Liability		Limit	Premium
SECTION I:	A. Dwelling Coverage	\$480,000	4896.56
	B. Other Structures	\$48,000	Included
	C. Personal Property	\$240,000	Included
	D. Loss of Use	\$96,000	Included
SECTION II:	E. Personal Liability - Each Occurrence	\$500,000	35.00
	F. Medical Payments to Others - Each Person	\$5,000	10.00
OTHER COVERAGES AND ENDORSEMENTS:			
(Printed on the following page)			
DEDUCTIBLE:			
	All Other Perils:	\$1000	
	Hurricane:	\$1000	

Special Messages: OTHER COVERAGES, LIMITS AND EXCLUSIONS APPLY - REFER TO YOUR POLICY FOR DETAILS
THIS POLICY DOES NOT INCLUDE COVERAGE FOR FLOOD LOSSES.

A MINIMUM EARNED PREMIUM OF \$50 APPLIES TO ALL POLICIES REGARDLESS OF HOW LONG THE POLICY IS IN FORCE.
THIS IS NOT REFUNDED WHEN THE POLICY IS CANCELLED.

THIS POLICY CONTAINS A SEPARATE DEDUCTIBLE FOR HURRICANE LOSSES WHICH MAY RESULT IN HIGH
OUT-OF-POCKET EXPENSES TO YOU.

Mortgagee:

1st Mortgagee:

Assurance Financial Group LLC
9029 JEFFERSON HWY
STE 100
BATON ROUGE, LA 70809
Loan #20143924C1X Escrow: Yes

2nd Mortgagee:



Countersigned by Authorized Representative

St. Petersburg, FL

Date: 02/25/2021

Other Coverages And Endorsements	Form Number	Limit	Premium
Homeowners Protection Policy	ASI HOH LA 09 19		
Coverage Explanation for Home Day Care Business	ASI HO NHDB 02 19		
Progressive Home & Auto Bundle Package	ASI HO PHAA 12 17		
Windstorm Exterior Paint or Waterproofing Exclusion	ASI HO WEPW 06 15		
PC / Construction Factor			233.07
Increased Repl Cost on Dwelling	ASI HO LA IRC 10 19	120000	221.01
Ordinance or Law		48000	Included
Personal Prop Replmnt Cost	ASI HO PPRC 07 19		348.09
Household Factor			67.70
Number of Residents			157.24
Paid in Full Discount			-237.75
Roof Material			-886.69
Tier Factor Premium			-124.85
Package Policy Discount			-599.64
New Purchase Discount			-244.63
Do Any Residents Smoke			-22.02
Fire Protection	ASI HO PAFS 06 15		-21.80
Burglar Protection	ASI HO PAFS 06 15		-107.89
Claims Free Discount			-347.01
Age of Dwelling			-1976.83
Square Footage			129.56
Non Hurricane Deductible		1000	-47.21
Hurricane Deductible	ASI HO LA HRD 06 15	1000	-5.56
Citizens FAIR Plan Emergency Assessment			42.43
Number of Stories			47.69
E-Policy (Paperless)			-10.00
Equipment Breakdown Endorsement	ASI HO EQB 10 19	100000	40.00
Fixed Base Premium			95.00
Personal Injury Coverage	ASI HO LA PNJ 04 17		15.00
Water Backup Coverage	ASI HO WBU 02 19	10000	40.00
Scheduled Items:			
Category	Description of Property	Value	Premium

Additional Insured:**Additional Interest:**

Interest:

Interest:

Rating Information:

Construction Type:	Masonry/Veneer	Total Square Feet:	3,299
Type of Residence:	Single Family	ASI Territory:	221
Year Built:	2021	County:	TANGIPAOA
Roof Year:	2021		

Special Conditions:

PLEASE READ YOUR POLICY DOCUMENTS CAREFULLY AS SPECIAL CONDITIONS AND EXCLUSIONS APPLY.

THESE INCLUDE, AMONG OTHERS:

1. LIMITED LIABILITY COVERAGE FOR WATERCRAFT AND RECREATIONAL VEHICLES
2. NO LIABILITY COVERAGE FOR EXCLUDED ANIMALS

Named Insured(s):PETER DERBINS AND KATIE DERBINS

Policy Number:LAL156822

Notes:

PROGRESSIVE[®]
HOME

Homeowners Protection Policy

Underwritten by:
Progressive Property Insurance Company



YOUR HOMEOWNERS POLICY

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PLEASE READ THIS POLICY CAREFULLY.

This is a legal contract between You and Us. It contains certain limitations and exclusions.

INSURANCE AGREEMENT

In reliance on the information you have provided to us, we agree to provide the insurance coverages indicated on the Policy Declarations pursuant to the policy terms and conditions. In return, you must pay the premium when due, comply with the policy terms and conditions, and immediately inform us of any change of use or occupancy of the "residence premises".

DEDUCTIBLE

Unless otherwise noted in this policy, all losses covered under Section I are subject to the applicable deductible amount shown in the Declarations.

SECTION I – PROPERTY COVERAGES

COVERAGE A – DWELLING

Covered Property

We cover:

1. The dwelling on the "residence premises", used mainly as your private residence, shown on the Declarations, including attached structures, other than fences, and attached wall-to-wall carpeting if damage to the dwelling is caused by a covered loss.
2. Materials and supplies located on or adjacent to the "residence premises" used in the construction, alteration or repair of the dwelling or other structures on the "residence premises".
3. In-ground swimming pools including related permanently installed equipment such as pumps and filters.

We do not cover land, including land on which the dwelling is located.

COVERAGE B – OTHER STRUCTURES

Covered Property

We cover other structures on the "residence premises" separated from the dwelling by clear space. Structures connected to the dwelling by only a fence, utility line, or similar connection, and fences are considered other structures. Docks, whether removable or not, are also considered other structures.

We do not cover:

1. Other structures:
 - a. Rented or held for rental to any person not a tenant of the dwelling, unless used solely as a private garage;
 - b. Used in whole or in part for "business" purposes;
 - c. Used to store "business" property. However, we do cover a structure that contains "business" property solely owned by an "insured" or a tenant of the dwelling provided that "business" property does not include gaseous or liquid fuel, other than fuel in a permanently installed fuel tank of a vehicle or craft parked or stored in the structure; or
 - d. Used for hobby farming.
2. Land, including land on which the other structures are located.

The limit of liability for this coverage will not be more than the limit of liability on the declaration page for

Coverage B. Use of this coverage does not reduce the Coverage A limit of liability.

COVERAGE A AND B – SPECIAL LIMITS OF LIABILITY

Cosmetic And Aesthetic Damage To Floors

The total limit of liability for Coverages A and B combined is \$10,000 per policy term for cosmetic and aesthetic damages to floors, resulting from a covered cause of loss.

1. Cosmetic or aesthetic damage includes, but is not limited to, chips, scratches, dents or any other damage to less than 5% of the total floor surface area and does not prevent typical use of the floor.
2. This limit includes the cost of tearing out and replacing any part of the building necessary to repair the damaged flooring.
3. This limit does not increase the Coverage A or Coverage B limits of liability shown on the declaration page.
4. This limit does not apply to cosmetic or aesthetic damage to floors caused by a Peril Insured Against as named and described for Coverage C – Personal Property.

COVERAGE C – PERSONAL PROPERTY

Covered Property

We cover personal property owned or used by an "insured" while it is anywhere in the world. At your request, we will cover personal property, which is not excluded elsewhere in this policy, that is owned by:

1. Others while the property is on the part of the "residence premises" occupied by an "insured"; or
2. A temporary guest or a "residence employee", while the property is in any residence occupied by an "insured".

Limit For Property At Storage Facilities Or Other Residences

We cover personal property that is located in a storage facility or that is usually located at an "insured's" residence that is not the "residence premises" listed in this policy for up to 10% of the limit of liability for Coverage C, or \$1,000, whichever is greater. This limitation does not apply to personal property:

1. Moved from the "residence premises" because the "residence premises" is being repaired, renovated or rebuilt and is unfit to live in or store property in; or
2. In a newly acquired principal residence for the first 30 days from the time you begin to move your property there.

Special Limits Of Liability

The special limit for each category shown below is the total limit for each loss for all property in that category. Additional coverage may apply if purchased and provided elsewhere in this policy. These special limits do not increase the Coverage C limit of liability.

1. We will pay no more than \$250 for the following category of property:
 - a. Money, bank notes, bullion, gold other than goldware, silver other than silverware, platinum other than platinumware, coins, medals, scrip, stored value cards and smart cards.
2. We will pay no more than \$1,000 for each of the following categories of property:
 - a. Art glass windows and other works of art such as, but not limited to paintings, statuary (including but not limited to Hummels), marbles, bronzes, porcelains, rare glass, and bric-a-brac.
 - b. Trading cards, comic books, figurines, stamps, advertising materials, stuffed animals, dolls, and sports and entertainment memorabilia, whether or not they are part of a collection.

3. We will pay no more than \$1,500 for each of the following categories of property:
 - a. Securities, accounts, deeds, evidences of debt, letters of credit, notes other than bank notes, manuscripts, personal records, passports, tickets and stamps. This dollar limit applies to these categories regardless of the medium (such as paper or computer software) on which the material exists. This limit includes the cost to research, replace or restore the information from the lost or damaged material.
 - b. Watercraft of all types, including their furnishings, equipment and outboard engines or motors.
 - c. Trailers or semitrailers of all types.
 - d. Loss by theft of jewelry, watches, furs, precious and semiprecious stones.
 - e. Electronic apparatus and accessories, while in or upon a "motor vehicle", but only if the apparatus is equipped to be operated by power from the "motor vehicle's" electrical system while still capable of being operated by other power sources. Accessories include antennas, tapes, wires, records, discs or other media that can be used with any apparatus described in this Category e.
 - f. Electronic apparatus and accessories used primarily for "business" while away from the "residence premises" and not in or upon a "motor vehicle". The apparatus must be equipped to be operated by power from the "motor vehicle's" electrical system while still capable of being operated by other power sources. Accessories include antennas, tapes, wires, records, discs or other media that can be used with any apparatus described in this Category f.
 - g. Property, away from the "residence premises", used primarily for "business" purposes. However, this limit does not apply to loss to electronic apparatus and other property described in Categories 3.e. and 3.f. above.
4. We will pay no more than \$2,000 for any individual item or set of electronic equipment caused directly or indirectly by theft or vandalism with a maximum total limit of 10% of the Coverage C limit for all electronic equipment. Electronic equipment includes, but is not limited to:
 - a. Televisions, audio, video and other electronic media playing and/or recording devices.
 - b. Audio and video media storage devices such as DVDs, records, CDs, and tapes.
 - c. Cameras, projectors and related equipment.
 - d. Gaming systems including their games and accessories.
5. We will pay no more than \$2,500 for each of the following categories of property:
 - a. Loss by theft of firearms, related equipment, and ammunition.
 - b. Loss by theft of silverware, silver-plated ware, goldware, gold-plated ware, platinumware, platinum-plated ware and pewterware. This includes flatware, hollowware, tea sets, trays and trophies made of or including silver, gold or pewter.
 - c. Property used primarily for "business" purposes that is located on the "residence premises" at the time of loss.
 - d. Loss by theft of personal computers, including but not limited to tablet, laptop and desktop computers, accessories, and related peripherals such as disk drives, printers, and commercial software. We will not pay for other software or lost data.
6. We will pay no more than \$5,000 for the following category of property:
 - a. Loss by theft of tools.

Additionally, we will pay no more than 10% of the total Coverage C amount for loss of or to any one item of unscheduled personal property.

Property Not Covered

We do not cover:

1. Personal property separately described and specifically insured in this or any other insurance

policy;

2. Any animals, including but not limited to mammals, reptiles, birds or fish;
3. "Motor vehicles" and all other motorized land conveyances. This includes, while such property is in or upon the "motor vehicle", the following:
 - a. Accessories, equipment and parts; or
 - b. Any device or instrument for the transmitting, recording, receiving or reproduction of sound or picture which is operated by power from the electrical system of motor vehicle or all other land conveyances. This includes accessories or antennas, tapes, wires, records, discs or other media that can be used with any apparatus described above.

We do cover vehicles or conveyances not required to be registered which are:

- (1) Used solely to service an "insured's" residence; or
- (2) Designed for assisting the handicapped;
4. Aircraft and Aircraft Parts. Aircraft means any contrivance used or designed for flight. Aircraft does not include model or hobby aircraft not used or designed to carry people or cargo;
5. Property of roomers, boarders, tenants and anyone who regularly resides at the insured premises who is not an "insured";
6. Property away from the "residence premises" in a location regularly rented or held for rental to others by an "insured";
7. Property away from the "residence premises" and rented or held for rental to others;
8. "Business" data, including such data stored in:
 - a. Books of account, drawings or other paper records; or
 - b. Electronic data processing or storage tapes, devices, records, discs, wires, software media, computers or related equipment.

However, we do cover the cost of blank recording or storage media, and of prerecorded computer programs available on the retail market. The most we will pay is the limit of liability for "business" property;

9. Credit cards, fund transfer cards or access devices used solely for deposit, withdrawal or transfer of funds except as provided in Credit Card, Fund Transfer Card, Forgery And Counterfeit Money under Section I – Property Coverages;
10. Water or steam; or
11. Virtual currency, cryptocurrency or any currency which does not have legal tender status recognized by the United States Treasury Department.

COVERAGE D – LOSS OF USE

The Coverage D limit of liability shown in the Declarations is the total limit of liability for all coverages within Coverage D. This limit applies on an aggregate basis for Additional Living Expense and Civil Authority Prohibits Use.

Additional Living Expense

If a loss covered under Section I makes that part of the "residence premises" where you reside not fit to live in, we cover necessary increase in living expenses incurred by you so that your household can maintain its normal standard of living. We will pay:

1. 80% of the additional living expenses you incur due to a windstorm or hail loss; or
2. 100% of the additional living expenses you incur due to a covered loss other than windstorm or hail;

but no more than the limit of liability shown for Coverage D on the declaration page.

Payment will be for the shortest time required to repair or replace such premises.

Civil Authority Prohibits Use

If a civil authority prohibits your use of the "residence premises" as a result of direct damage to a neighboring premise by a Peril Insured Against, we will cover, pursuant to the above provisions, any

Additional Living Expense loss that you incur. Coverage is for a period of no more than two weeks while use is prohibited.

Loss Not Covered

We do not cover loss due to cancellation of a lease or agreement.

The periods of time under Additional Living Expense and Civil Authority Prohibits Use above are not limited by expiration of this policy.

ADDITIONAL COVERAGES

The following Additional Coverages are subject to all the terms, provisions, exclusions and conditions of this policy.

Debris Removal

We will pay the reasonable expense you incur for the removal of:

1. Debris of covered property if the loss is from a covered loss; or
2. Ash, dust or particles from a volcanic eruption that has caused direct loss to covered property.

If the amount we owe for the actual damage to the property plus the reasonable debris removal expense exceeds the limit of liability for the damaged property, an additional 5% of that limit is available for such expense. This coverage does not change the limit of liability that applies to the damaged covered property.

We will also pay your reasonable expense, up to \$1,000, for the removal from the "residence premises" of:

1. Your tree(s) felled by the peril of Windstorm or Hail or Weight of Ice, Snow or Sleet; or
2. A neighbor's tree(s) felled by a Peril Insured Against under Coverage C;

provided the tree(s):

- a. Damage(s) a covered structure; or
- b. Does not damage a covered structure, but:
 - (1) Blocks a driveway on the "residence premises" which prevents a "motor vehicle", that is registered for use on public roads or property, from entering or leaving the "residence premises"; or
 - (2) Blocks a ramp or other fixture designed to assist a handicapped person to enter or leave the dwelling building.

The \$1,000 limit is the most we will pay in any one loss regardless of the number of fallen trees. We will pay no more than \$500 of this limit for the removal of any one tree.

Emergency Repairs

If a Peril Insured Against causes damage to covered property, we will pay the reasonable cost you incur for emergency repairs or measures that are necessary to protect that covered property from further damage. This coverage does not increase the limit of liability that applies to the covered property or relieve you of your duties described in What Must Be Done After A Loss.

Trees, Shrubs And Other Plants

We cover outdoor trees, shrubs, plants or lawns, on the "residence premises", for loss caused by the following perils:

1. Fire or Lightning;
2. Explosion;
3. Riot or Civil Commotion;
4. Aircraft;
5. Vehicles not owned or operated by a resident of the "residence premises";
6. Vandalism or Malicious Mischief; or
7. Theft.

Property grown for "business" purposes is not covered.

The limit of insurance, including debris removal, for any one loss will not exceed:

1. 5% of the limit of liability that applies to Coverage A for all trees, shrubs, plants or lawns; and
2. No more than \$500 of this limit for any one tree, shrub or plant.

This coverage is additional insurance.

Fire Department Service Charge

We will pay up to \$500 for incurred service fees charged by a fire department when called to protect covered property from a covered loss. We will pay no more than \$500 in fees resulting from any one service call. This coverage is additional insurance. No deductible applies to this coverage.

Property Removed

We cover accidental direct physical loss to covered property while being removed from a premises that is endangered by a Peril Insured Against. This coverage also applies to the property for up to 30 days while removed. This coverage does not change the limit of liability that applies to the property being removed.

Collapse

Collapse means an abrupt falling down or falling into pieces of a building or part of a building that:

1. Results in the "residence premises" being unable to be occupied for its current intended purpose; and
2. Is caused by one or more of the following:
 - a. A Peril Insured Against under Coverage C;
 - b. Hidden decay of a structural member of the building, unless the presence of such decay is known to an "insured" prior to collapse;
 - c. Hidden insect or vermin damage to a structural member of the building, unless the presence of such damage is known to an "insured" prior to collapse;
 - d. Weight of contents, equipment, animals or people;
 - e. Weight of snow, ice, rain or sleet which collects on a roof; or
 - f. Use of defective material or methods in construction, remodeling or renovation if the collapse occurs during the course of the construction, remodeling or renovation.

A building or any part of a building that is in danger of falling down or caving in is not considered to be in a state of collapse. A building or any part of a building that is standing is not considered to be in a state of collapse even if it shows evidence of cracking, bulging, sagging, bending, leaning, settling, shrinkage or expansion. A part of a building that is standing is not considered to be in a state of collapse even if it has separated from another part of the building.

Loss to an awning, fence, patio, deck, pavement, swimming pool, underground pipe, flue, drain, cesspool, septic tank, foundation, retaining wall, bulkhead, pier, wharf or dock is not included under a. through f. above, unless the loss is a direct result of the collapse of a building or any part of a building.

This coverage does not increase the limit of liability that applies to the damaged covered property.

Credit Card, Fund Transfer Card, Forgery And Counterfeit Money

We will pay up to \$1,000 for:

1. The legal obligation of an "insured" to pay because of the theft or unauthorized use of credit cards issued to or registered in an "insured's" name;
2. Loss resulting from theft or unauthorized use of an electronic fund transfer card or access device used for deposit, withdrawal or transfer of funds, issued to or registered in an "insured's" name;
3. Loss to an "insured" as a result of forgery or alteration of a check or negotiable instrument; and
4. Loss to an "insured" as a result of good faith acceptance of counterfeit United States or Canadian paper currency.

All loss resulting from a series of acts which are committed by any one person or group of persons or which involved or implicated any one person or group of persons is considered to be one loss.

This coverage is additional insurance. No deductible applies to this coverage.

We may investigate and settle any claim or suit that we decide is appropriate. Our duty to defend a claim or suit ends when our limit of liability for the loss has been exhausted by payment of a judgment or settlement.

If a suit is brought against an "insured" for liability under 1. or 2. above, we will provide a defense at our expense by counsel of our choice.

We have the option to defend at our expense an "insured" or an "insured's" bank against any suit for the enforcement of payment under 3. above.

We do not cover:

1. Use of a credit card or fund transfer card:
 - a. By a resident of your household;
 - b. By a person who has been entrusted with either type of card; or
 - c. If an "insured" has not complied with all terms and conditions under which the cards are issued; or
2. Loss arising out of "business" use or dishonesty of an "insured".

Loss Assessment

We will pay up to \$1,000 for your share of loss assessment charged during the policy period against you, as owner of the "residence premises", by an association of property owners. The assessment must be made as a result of direct loss to property, owned by all members collectively, of the type that would be covered by this policy if owned by you, caused by a Peril Insured Against under Coverage A, subject to all provisions of this policy.

This coverage does not apply to assessments made as a result of damage caused by:

1. Earthquake; or
2. Land shock waves or tremors before, during or after a volcanic eruption.

The limit of \$1,000 is the most we will pay with respect to any one loss, regardless of the number of assessments. We will only apply one deductible, per unit, to the total amount of any one loss to the property described above, regardless of the number of assessments.

We do not cover assessments charged against you or a corporation or association of property owners by any governmental body.

Policy Period under Section I – Conditions does not apply to this coverage.

This coverage is additional insurance.

Breakage Of Glass Or Safety Glazing Material

We cover:

1. The breakage of glass or safety glazing material which is part of a building on the "residence premises", storm door or storm window; and
2. Direct physical loss to covered personal property caused solely by the breakage of glass or safety glazing material which is part of a building on the "residence premises", storm door or storm window.

This peril does not include loss on the "residence premises" if the dwelling has been "vacant" or "unoccupied" for more than 60 consecutive days immediately before the loss, except when the breakage results directly from earth movement. A dwelling being constructed is not considered "vacant" or "unoccupied".

This coverage does not increase the limit of liability that applies to the damaged covered property.

"Fungi", Wet Or Dry Rot, Or Bacteria

\$5,000 is the most we will pay for:

1. The total of all loss payable under Section I – Property Coverages caused by "fungi", wet or dry rot, or bacteria;
2. The cost to remove "fungi", wet or dry rot, or bacteria from property covered under Section I – Property Coverages;
3. The cost to tear out and replace any part of the building or other covered property as needed to gain access to the "fungi", wet or dry rot, or bacteria; and
4. The cost of testing of air or property to confirm the absence, presence, or level of "fungi", wet or dry rot, or bacteria whether performed prior to, during, or after removal, repair, restoration or replacement. The cost of such testing will be provided only to the extent that there is reason to believe that there is presence of "fungi", wet or dry rot, or bacteria.

Pet Injury Coverage

This Additional Coverage for "Fungi" Wet or Dry Rot, or Bacteria only applies when loss or costs are a result of a Peril Insured Against that occurs during the policy period and only if all reasonable means were used to save and preserve the property from further damage at and after the time the Peril Insured Against occurred.

\$5,000 is the most we will pay for the total of all loss or costs payable under this Additional Coverage regardless of the:

1. Number of locations insured under this policy; or
2. Number of claims-made.

If there is covered loss or damage to covered property, not caused, in whole or in part, by "fungi", wet or dry rot, or bacteria, loss payment will not be limited by the terms of this Additional Coverage, except to the extent that "fungi", wet or dry rot, or bacteria causes an increase in the loss. Any such increase in the loss will be subject to the terms of this Additional Coverage.

This coverage does not increase the limit of liability applying to the damaged covered property.

For this Additional Coverage, Section I – Condition, Policy Period is replaced by the following:

Policy Period

This policy applies only to loss or costs which occur during the policy period.

If an "insured's" dog or cat sustains injury or death while on the "residence premises" and as a result of a covered loss, we will provide:

1. Up to \$1,000 for reasonable and customary veterinary fees incurred by an "insured" if the dog or cat is injured while on the "residence premises" and as a result of a covered loss; or
2. A \$1,000 death benefit if an "insured's" dog or cat dies while on the "residence premises" and as a result of a covered loss, less any payment we made toward veterinary expenses.

\$1,000 is the most we will pay for the total of all loss or costs payable under this Additional Coverage, regardless of the number of dogs or cats involved.

Property Not Covered, 2., does not apply to the extent coverage is provided under this Additional Coverage.

This coverage is additional insurance. No deductible applies to this coverage.

SECTION I – PERILS INSURED AGAINST

COVERAGE A – DWELLING AND COVERAGE B – OTHER STRUCTURES

We insure for sudden and accidental direct physical loss to property described in Coverages A and B.

However, we do not insure for loss:

1. Excluded under Section I – Exclusions;
2. Involving collapse, except as provided under Section I – Additional Coverages; or
3. Caused by:
 - a. Freezing of a plumbing, heating, air conditioning or automatic fire protective sprinkler system or of a household appliance, or by discharge, leakage or overflow from within the system or appliance caused by freezing. This exclusion does not apply if you have used reasonable care to:
 - (1) Maintain heat in the building; or
 - (2) Shut off the water supply and drain all systems and appliances of water.

However, if the building is protected by an automatic fire protective sprinkler system, you must use reasonable care to continue the water supply and maintain heat in the building for coverage to apply.

For purposes of this provision a plumbing system or household appliance does not include a sump, sump pump or related

equipment or a roof drain, gutter, downspout or similar fixtures or equipment;

- b. Freezing, thawing, pressure or weight of water or ice, whether driven by wind or not, to a:
 - (1) Swimming pool, hot tub, or spa, including their filtration and circulation system;
 - (2) Fence, pavement, patio;
 - (3) Foundation, retaining wall or bulkhead that does not support all or part of a building or other structure; or
 - (4) Pier, wharf or dock;
- c. Theft in or to a dwelling under construction, or of materials and supplies for use in the construction until the dwelling is finished and occupied;
- d. Vandalism and malicious mischief, and any ensuing loss caused by any intentional and wrongful act committed in the course of the vandalism or malicious mischief, if the dwelling has been "vacant" or "unoccupied" for more than 60 consecutive days immediately before the loss. A dwelling being constructed is not considered "vacant" or "unoccupied";
- e. Constant or repeated seepage or leakage of water or steam or the presence of condensation or humidity, moisture or vapor, over a period of 14 or more days from within a plumbing, heating, air conditioning or automatic fire protective sprinkler system, or from within a household appliance. In the event this exclusion applies, we will not pay for any damages sustained starting from the first day the seepage or leakage of water or steam or the presence of condensation or humidity, moisture or vapor began;
- f. Wear and tear, marring, or deterioration;
- g. Mechanical breakdown, latent defect, inherent vice, or any quality in property that causes it to damage or destroy itself;
- h. Smog, rust or other corrosion;
- i. Smoke from agricultural smudging or industrial operations;
- j. Discharge, dispersal, seepage, migration, release or escape of pollutants unless the discharge, dispersal, seepage, migration, release or escape is itself caused by a Peril Insured Against named under Coverage C. Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed;
- k. Settling, shrinking, bulging or expansion, including resultant cracking, of bulkheads, pavements, patios, footings, foundations, walls, floors, roofs or ceilings;
- l. Birds, vermin, rodents, or insects. Vermin include, but are not limited to, armadillos, bats, coyotes, lizards, opossums, raccoons, skunks, snails, or slugs;
- m. Nesting or infestation, or discharge or release of waste products or secretions, by any animals;
- n. Animals owned or kept by an "insured"; or
- o. Pressure from or presence of tree, shrub or plant roots.

Exception to 3.f. through 3.o.

Unless the loss is otherwise excluded, we cover loss to property covered under Coverage A or B resulting from an accidental discharge or overflow of water or steam from within a plumbing, heating, air conditioning or automatic fire protective sprinkler system or household appliance on the "residence premises", including the cost to tear out and replace any part of a building, or other structure, on the "residence premises", but only when necessary to repair the system or appliance. However, such tear out and replacement coverage only applies to other structures if the water or steam causes actual damage to a building on the "residence premises".

We do not cover loss to the system or appliance from which this water or steam escaped.

For purposes of this provision, a plumbing system or household appliance does not include a sump, sump pump or related equipment or a roof drain, gutter, down spout or similar fixtures or equipment.

Section I – Exclusions, Water Damage, Paragraphs 1. and 4. that apply to surface water and water below the surface of the ground do not apply to loss by water covered under 3.e. through 3.o. above.

Under 2.and 3. above, any ensuing loss to property described in Coverages A and B, not excluded by any other provision in this policy is covered.

COVERAGE C – PERSONAL PROPERTY

We insure for sudden and accidental direct physical loss to the property described in Coverage C caused by any of the following perils unless the loss is excluded in Section I – Exclusions.

Fire Or Lightning	
Windstorm Or Hail	This peril does not include loss to property contained in a building if the loss is caused by rain, snow, sleet, sand or dust unless the direct force of wind or hail damages the building causing an opening in a roof or wall and the rain, snow, sleet, sand or dust enters through this opening. This peril includes loss to watercraft and their trailers, furnishings, equipment, and outboard engines only while located inside a fully enclosed building.
Explosion	
Riot Or Civil Commotion	
Aircraft	This peril includes spacecraft and self-propelled missiles.
Vehicles	
Smoke	This peril means sudden and accidental damage from smoke. This peril does not include loss caused by smoke from industrial operations or agricultural smudging.
Vandalism Or Malicious Mischief	If the dwelling has been "vacant" or "unoccupied" for more than 90 consecutive days immediately before the loss, this peril does not include loss to property on the "residence premises" or any ensuing loss caused by any intentional or wrongful act committed in the course of the vandalism or malicious mischief. A dwelling being constructed is not considered "vacant" or "unoccupied".
Theft	This peril includes theft as well as attempted theft and loss of property from a known place when it is likely that the property has been stolen. We do not cover theft or attempted theft: 1. Committed by an "insured"; 2. From that part of the "residence premises" rented by you to someone other than another "insured"; 3. Of trailers, campers, or watercraft while located away from the "residence premises"; 4. In or to the "residence premises" while under construction, or of materials and supplies for use in the construction of the "residence premises" until it is finished and occupied; or 5. Of property while at any other residence owned by, rented to, or occupied by an "insured", except while an "insured" is temporarily living there. Property of an "insured" who is a student is covered while at the residence the student occupies to attend school as long as the student has occupied the residence during the 60 days immediately before the loss.
Falling Objects	This peril does not include loss to property contained in a building unless the roof or an outside wall of the building is first damaged by a falling object. Damage to the falling object itself is not included. This peril does not include loss caused by objects which fall as a result of any loss excluded under Section I – Exclusions.
Weight Of Ice, Snow Or Sleet	This peril means weight of ice, snow or sleet which causes damage to property contained in the "residence premises".

**Accidental Discharge
Or Overflow Of Water
Or Steam**

This peril means accidental discharge or overflow of water or steam from within a plumbing, heating, air conditioning or automatic fire protective sprinkler system or from within a household appliance.

This peril does not include loss:

1. To the system or appliance from which the water or steam escaped;
2. Caused by or resulting from freezing except as provided in Peril Insured Against Freezing;
3. On the "residence premises" caused by accidental discharge or overflow which occurs away from the building where the "residence premises" is located; or
4. Caused by constant or repeated seepage or leakage of water or steam or the presence of condensation or humidity, moisture or vapor, over a period of 14 or more days from within a plumbing, heating, air conditioning or automatic fire protective sprinkler system, or from within a household appliance. In the event this exclusion applies, we will not pay for any damages sustained starting from the first day the seepage or leakage of water or steam or the presence of condensation or humidity, moisture or vapor began.

In this peril, a plumbing system or household appliance does not include a sump, sump pump or related equipment or a roof drain, downspout, gutter or similar fixtures or equipment.

The portions of Paragraphs 1. and 4. of Section I – Exclusions, Water Damage that apply to surface water and water below the surface of the ground, do not apply to loss by water covered under this peril.

**Sudden And
Accidental Tearing
Apart, Cracking,
Burning Or Bulging**

This peril means sudden and accidental tearing apart, cracking, burning or bulging of a steam or hot water heating system, an air conditioning system, or an automatic fire protective sprinkler system. This peril does not include loss caused by or resulting from freezing except as provided in Freezing below.

Freezing

This peril means freezing of a plumbing, heating, air conditioning or automatic fire protective sprinkler system or of a household appliance but only if you have used reasonable care to:

1. Maintain heat in the building; or
2. Shut off the water supply and drain all systems and appliances of water.

However, if the building is protected by an automatic fire protective sprinkler system, you must use reasonable care to continue the water supply and maintain heat in the building for coverage to apply.

With respect to this peril, a plumbing system or household appliance does not include a sump, sump pump or related equipment or a roof drain, downspout, gutter or similar fixtures or equipment.

**Sudden And
Accidental Damage
From Artificially
Generated Electrical
Current**

This peril does not include loss to electronic components, circuitry, tubes, or transistors that are a part of appliances, fixtures, computers, home entertainment units or other types of electronic apparatus.

Volcanic Eruption

This peril does not include loss caused by earthquake, tremors or land shock waves. One or more volcanic eruptions that occur within a 72-hour period will be considered one volcanic eruption.

SECTION I – EXCLUSIONS

We do not insure for loss caused directly or indirectly by any of the following. Such loss is excluded regardless of any other cause or event contributing concurrently or in any sequence to the loss. These exclusions apply whether or not the loss event results in widespread damage or affects a substantial area.

Ordinance Or Law

Ordinance Or Law means enforcement of any ordinance or law:

1. Requiring or regulating the construction, demolition, remodeling, renovation or repair of building or other structure, including removal of any resulting debris.

2. The requirements of which result in a loss in value to property; or
 3. Requiring any "insured" or others to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, pollutants.
- Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

This Exclusion, Ordinance Or Law, applies whether or not the property has been physically damaged.

Earth Movement

Earth Movement means any sinking, rising, shifting, expansion or contraction of earth, whether the cause is natural or not. Earth Movement includes but is not limited to earthquake, land shock waves, tremors, landslide, mudslide, mudflow, subsidence, sinkhole, erosion, hydraulic fracturing and volcanic explosion or lava flow, except as provided in the Peril Insured Against for Volcanic Eruption.

This Exclusion does not apply to loss by theft or an ensuing direct loss by fire or explosion.

Water Damage

Water Damage means:

1. Flood, surface water, waves, including tidal wave and tsunami, tides, tidal water, overflow of any body of water, or spray from any of these, whether or not driven by wind, including storm surge;
2. Water or any other substance that backs up through sewers or drains;
3. Water or any other substance that overflows from a sump pump, sump pump well or other system designed for the removal of subsurface water which is drained from a foundation area of a structure; or
4. Water or any other substance on or below the surface of the ground, regardless of its source. This includes but is not limited to water or any other substance which exerts pressure on or flows, seeps or leaks through any part of the "residence premises".

This exclusion applies to, but is not limited to, escape, overflow or discharge, of water or any other substance from a dam, levee, seawall or any other boundary or containment system.

Direct loss by fire, explosion or theft resulting from water damage is covered.

Power Interruption

Power Interruption means the failure of power or other utility service that occurs off the "residence premises". However, if the failure results in accidental direct physical loss, from a Peril Insured Against on the "residence premises", we will pay for the loss caused by that peril.

Neglect

Neglect means neglect of any "insured" to use all reasonable means to protect and preserve property at and after the time of a loss. Neglect by any "insured" excludes coverage for all "insureds".

War

War includes the following and any consequence of any of the following:

1. Declared war, undeclared war, civil war, insurrection, rebellion, revolution, warlike act by a military force or military personnel, discharge of a nuclear weapon even if accidental; or
2. Destruction, seizure or use for a military purpose.

Nuclear Hazard

Nuclear Hazard means any nuclear reaction, radiation, or radioactive contamination, all whether controlled or uncontrolled or however caused, or any consequence of any of these. Loss caused by a nuclear hazard will not be considered loss caused by fire, explosion, or smoke. However, direct loss by fire resulting from a nuclear hazard is covered.

Intentional Loss

With respect to loss caused by fire, Intentional Loss means any loss arising out of any act committed by or at the direction of the "insured" and with the intent to cause a loss.

With respect to loss caused by a peril other than fire, Intentional Loss means loss resulting from any act performed by, at the direction of, or in conspiracy with any "insured", with the intent to cause a loss or which may reasonably have been expected to result in a loss. Coverage is excluded for all insureds, regardless of whether all "insureds" committed or conspired to commit the act which caused the intentional

	loss.
Governmental Taking Or Destruction	Governmental Action means the taking or destruction of property described in Coverage A, B or C by order of any governmental or public authority. However, coverage applies for Governmental Action taken to prevent the spread of fire at the time of a covered fire loss.
Illegal Or Criminal Acts	Illegal or Criminal Acts means any illegal or criminal act performed by, at the direction of, or in conspiracy with any "insured", that results in loss to covered property. This exclusion applies regardless of whether the "insured" is charged with a crime.
Diminished Value	We do not cover any loss due to diminished value of any property covered under this policy.
"Fungi", Wet Or Dry Rot, Or Bacteria	We do not cover any loss due to "fungi", wet or dry rot, or bacteria. This includes the presence, growth, proliferation, spread or any activity of "fungi", wet or dry rot, or bacteria. This exclusion does not apply: 1. When "fungi", wet or dry rot, or bacteria results from fire or lightning; or 2. To the extent coverage is provided under the "Fungi", Wet Or Dry Rot, Or Bacteria Additional Coverage in Section I – Property Coverages, with respect to loss caused by a Peril Insured Against other than fire or lightning. Direct loss by a Peril Insured Against resulting from "fungi", wet or dry rot, or bacteria is covered.
Existing Damage	We do not cover: 1. Damages which occurred prior to policy inception regardless of whether such damages were apparent at the time of the inception of this policy or discovered at a later date; or 2. Claims or damages arising out of workmanship, repairs or lack of repairs arising from damage which occurred prior to policy inception.
Windstorm Or Hail	We do not cover any loss due to windstorm or hail to: 1. Outdoor radio equipment, television antennas, satellite dishes, and aerials including their lead wiring, masts and towers; 2. Awnings, aluminum framed screened enclosures, aluminum framed carports, and aluminum sheds; and 3. Solar panels, solar water heating systems including solar panels, pipes supplying and returning water to solar panels, and equipment or devices controlling solar water heating systems.

We do not insure for loss to property described in Coverages A and B caused by any of the following:

1. Weather conditions. However, this exclusion only applies if weather conditions contribute in any way with a cause or event excluded in Section I – Exclusions above to produce the loss.
2. Acts or decisions, including the failure to act or decide, of any person, group, organization or governmental body.
3. Faulty, inadequate or defective:
 - a. Planning, zoning, development, surveying, siting;
 - b. Design, specifications, workmanship, repair, construction, renovation, remodeling, grading, compaction;
 - c. Materials used in repair, construction, renovation or remodeling; or
 - d. Maintenance;

of part or all of any property whether on or off the "residence premises".

However, any ensuing loss to property described in Coverages A and B not precluded by any other provision in this policy is covered.

SECTION I – CONDITIONS

What Must Be Done After A Loss

In the event of a loss to which coverage may apply, the following duties must be performed either by you, an "insured" seeking coverage, or a representative of either:

1. Give us immediate notice. When the loss is caused by the peril of windstorm or hail, that notice must occur no later than one year after the date of loss;
2. Notify the police of loss by theft or vandalism or malicious mischief and:
 - a. File a police report describing all items stolen;
 - b. Submit the filed report to us; and
 - c. Cooperate with the police in their investigation;
3. Notify the credit card or electronic fund transfer card or access device company in case of loss as provided for in the Additional Coverage for Credit Card, Fund Transfer Card, Forgery And Counterfeit Money;
4. Protect the property from further damage. If repairs to the property are required, you must:
 - a. Make reasonable and necessary repairs to protect the property; and
 - b. Keep an accurate record of repair expenses;
5. Cooperate with us in the investigation and processing of a claim;
6. Prepare a written inventory of damaged personal property showing the quantity, description, "actual cash value" and amount of loss for each item. Attach all bills, receipts and related documents that verify or support the information stated in the inventory;
7. As often as we reasonably require:
 - a. Show the damaged property;
 - b. Provide us with records and documents we request and permit us to make copies; and
 - c. You, any "insured" and anyone you hire in connection with your claim must:
 - (1) Submit to examinations under oath and recorded statements, while not in the presence of any other "insured"; and
 - (2) Sign the same.

Representations made by any of the preceding persons who appear in examinations under oath or recorded statements will be deemed to be your representations.
8. Send to us, within 60 days after our request, your signed, sworn proof of loss which sets forth, to the best of your knowledge and belief:
 - a. The time and cause of loss;
 - b. The interests of all "insureds" and others in the property involved, and any encumbrances on the property;
 - c. Other insurance which may cover the loss;
 - d. Changes in title or occupancy of the property during the term of this policy;
 - e. Specifications of damaged buildings and detailed repair estimates;
 - f. The inventory of damaged personal property described in 6. above;
 - g. Receipts for additional living expenses incurred; and
 - h. Evidence or affidavit that supports a claim under the Additional Coverage for Credit Card, Fund Transfer Card, Forgery And Counterfeit Money, stating the amount and cause of loss.

The 60-day period is extended to 180 days after our request, if the loss results from a catastrophic event for which a state of disaster or emergency was declared pursuant to law by civil officials; however, this 180-day period does not commence until the state of emergency or disaster has ended and you have access to your property.

We have no duty to provide coverage under this policy if there is a failure to comply with the above

duties and that failure is prejudicial to us.

How A Loss Will Be Settled

Covered property losses are settled as follows:

1. Property of the following types:
 - a. Personal property;
 - b. Awnings, carpeting, household appliances, outdoor antennas and outdoor equipment, whether or not attached to buildings;
 - c. Structures that are not buildings;at "actual cash value" at the time of loss but not more than the amount required to repair or replace.
2. Buildings covered under Coverage A or B at replacement cost without deduction for depreciation, subject to the following:
 - a. We will pay the cost to repair or replace, after application of any deductible and without deduction for depreciation, but not more than the least of the following amounts:
 - (1) The limit of liability under this policy that applies to the building;
 - (2) The replacement cost of that part of the building damaged with material of like kind and quality; or
 - (3) The necessary amount actually spent to repair or replace the damaged building.If the building is rebuilt at a new premises, the cost described in (2) above is limited to the cost which would have been incurred if the building had been built at the original premises.
 - b. We will pay no more than the "actual cash value" of the damage until actual repair or replacement is complete. Once actual repair or replacement is complete, we will settle the loss as noted in 2.a. above.

However, if the cost to repair or replace the damage is both:

 - (1) Less than 5% of the amount of insurance in this policy on the building; and
 - (2) Less than \$2,500;we will settle the loss as noted in 2.a. above whether or not actual repair or replacement is complete.
 - c. We will not pay for increased costs resulting from enforcement of any ordinance or law regulating the construction, repair or demolition of a building or other structure.
 - d. You may disregard the replacement cost loss settlement provisions and make claim under this policy for loss to buildings on an "actual cash value" basis. You may then make claim for any additional liability according to the provisions of this Condition, How A Loss Will Be Settled, provided you notify us of your intent to repair or replace the damaged building within 180 days after the date of loss. However, if the loss results from a catastrophic event for which a state of disaster or emergency has been declared pursuant to law by civil officials, this 180-day period does not commence until the state of emergency or disaster has ended and you have access to your property.
3. When damage from hail consists of dents, scratches, or nicks to your carport(s) or to the exterior surface of Other Structures, that do not compromise the structural integrity of your carport(s) or Other Structures, we will pay the lowest of the following amounts:
 - a. The cost of repairing or replacing the damaged portion of the property; or
 - b. 2% of the amount of insurance provided under Coverage A (Dwelling).
4. We will not pay for the cost to replace and/or match any undamaged siding, roofing material and/or windows due to any mismatch or lack of uniformity between the existing undamaged siding, roofing material and/or windows on a dwelling or other structure and new materials used to repair or replace the damaged siding, roofing material and/or windows on a dwelling or other structure because of:
 - a. Wear and tear, marring, scratching or deterioration;
 - b. Fading, weathering, oxidizing or color;
 - c. Texture or dimensional differences; or

- d. Obsolescence, defect or discontinuation.

Loss Payment

We will adjust all losses with you. We will pay you unless some other person is named in the policy or is legally entitled to receive payment. The undisputed portion of the loss will be payable within 30 days after we receive your proof of loss.

Our Options

We have the option to repair or replace any part of the damaged property with material or property of like kind and quality. We may also take all or part of the damaged property at the agreed or appraised value.

Insurable Interest

In the event of a covered loss, we will not be liable to an "insured" for more than the amount of such "insured's" interest in the covered property at the time of loss.

Loss To A Pair Or Set

In the event of a covered loss to a pair or set, we may elect to:

1. Repair or replace any part of the pair or set to restore it to its "actual cash value" before the loss; or
2. Pay the difference in the "actual cash value" of the pair or set before and after the loss.

Appraisal

If you and we fail to agree on the amount of loss,, an appraisal of the loss may take place. However, both parties must agree to the appraisal and once agreed, the appraisal process cannot be withdrawn.

If appraisal is demanded by either party, each will choose a competent, disinterested, and impartial appraiser within 20 days after receiving a written request from the other. The two appraisers will choose an umpire.

If the two appraisers cannot agree upon an umpire within 15 days of both parties naming their appraiser, then either party may seek selection of an umpire by filing a petition in a court of record in the county and jurisdiction where the "residence premises" is located, provided the requesting party provides the non-requesting party with notice at least 15 days prior to any hearing via certified mail.

An umpire must be competent, disinterested, and impartial.

All written demands for appraisal and notice of hearings to us must be sent to the address for the insurer listed on the Declarations Page.

The appraisers will separately appraise the amount of the loss. If the appraisers submit a signed written report of an agreement to us that itemizes all items or elements of loss and delineates the amount for each applicable coverage in the policy, in both "actual cash value" and replacement cost value, the amount agreed upon will be the amount of loss. If they fail to agree, they will submit their differences to the umpire and the umpire will generate a proposed written report as set forth above. A written report, as set forth above, agreed to and signed by any two will set the amount of loss as the appraisal award. Any decisions rendered by this Appraisal provision is not binding on either party.

Each party will:

1. Pay its own appraiser; and
2. Bear the other expenses of the appraisal and umpire equally.

If there is an appraisal award, we will still retain our right to apply any applicable policy terms, limits, deductibles, and conditions. Suit cannot be filed against us during the appraisal process. If suit was filed against us prior to the demand of appraisal, suit will be held in abatement until the execution of an appraisal award.

Other Insurance And Service Agreement

If a loss covered by this policy is also covered by:

1. Other insurance, we will pay only the proportion of the loss that the limit of liability that applies under this policy bears to the total amount of insurance covering the loss; or
2. A service agreement, this insurance is excess over any amounts payable under any such agreement. Service agreement means a service plan, property restoration plan, home warranty or other similar service warranty agreement, even if it is characterized as insurance.

Legal Action Against Us

No legal action can be brought against us unless there has been full compliance with all of the terms under Section I of this policy and the legal action is filed within two years after the date of loss.

Abandonment Of Property

We have no liability for and no duty to accept any property abandoned by an "insured".

Mortgage Clause

The word mortgagee includes a trustee pursuant to a deed of trust. If a mortgagee is named in this policy, any loss payable under Coverage A or B will be paid to the mortgagee and you, as interests appear. If more than one mortgagee is named, the order of payment will be the same as the order of precedence of the mortgages.

If we deny your claim, that denial will not apply to a valid claim of the mortgagee, if the mortgagee:

1. Notifies us of any change in ownership, occupancy or substantial change in risk of which the mortgagee is aware;
2. Pays any premium due under this policy on demand if you have neglected to pay the premium; and
3. Submits a signed, sworn statement of loss within 60 days after receiving notice from us of your failure to do so. Paragraphs 2. and 7. of What Must Be Done After A Loss, Appraisal, Legal Action Against Us, and Loss Payment under Section I – Conditions also apply to the mortgagee.

If we decide to cancel this policy for nonpayment of premium, the mortgagee will be notified at least 10 days before the date cancellation takes effect. If we decide to cancel this policy for any other reason, the mortgagee will be notified at least 30 days before the date cancellation takes effect. If we decided not to renew this policy, the mortgagee will be notified at least 30 days before the date nonrenewal takes effect.

If we pay the mortgagee for any loss and deny payment to you:

1. We are subrogated to all the rights of the mortgagee granted under the mortgage on the property; or
2. At our option, we may pay to the mortgagee the whole principal on the mortgage plus any accrued interest. In this event, we will receive a full assignment and transfer of the mortgage and all securities held as collateral to the mortgage debt.

Subrogation will not impair the right of the mortgagee to recover the full amount of the mortgagee's claim.

We provide coverage to no mortgagee or its representatives under this policy if, whether before or after a loss, a mortgagee or its representatives has:

1. Intentionally concealed or misrepresented any material fact or circumstance;
2. Engaged in fraudulent conduct; or
3. Made false statements; relating to this insurance.

No Benefit To Bailee

We will not recognize any assignment or grant any coverage that benefits a person or organization holding, storing or moving property for a fee. This provision applies regardless of any other provision of this policy.

Recovered Property

If you or we recover any property for which we have made payment under this policy, you or we will notify the other of the recovery. You may choose to take possession of the recovered property or it will become our property. If you choose to take possession of the recovered property, the loss payment will be adjusted based on the amount you received for the recovered property.

Policy Period

This policy applies only to loss which occurs during the policy period.

Concealment Or Fraud

With respect to loss caused by fire, we do not provide coverage to the "insured" who, whether before or after a loss, has:

1. Intentionally concealed or misrepresented any material fact or circumstance;
2. Engaged in fraudulent conduct; or
3. Made false statements;
relating to this insurance.

With respect to loss caused by a peril other than fire, we provide coverage to no "insureds" under this policy if, whether before or after a loss, any "insured" has:

1. Intentionally concealed or misrepresented any material fact or circumstance;
2. Engaged in fraudulent conduct; or
3. Made false statements;
relating to this insurance.

However, if the conduct specified above is in relation to the procurement of the contract or occurs subsequent to the issuance of the contract, but if known to us would have caused us not to issue the policy, coverage will only be denied if the conduct was committed with the intent to deceive.

Venue

This policy and any performance there under shall be construed with and governed by the laws of the State of Louisiana.

Assignment Of Claim Benefits

No assignment of claim benefits, regardless of whether made before loss or after loss, shall be valid without the written consent of all "insureds", all additional insureds, and all mortgagee(s) named in this policy.

SECTION II – LIABILITY COVERAGES

COVERAGE E – PERSONAL LIABILITY

If a claim or lawsuit is brought against an "insured" for damages because of "bodily injury" or "property damage" caused by an "occurrence" to which this coverage applies, we will:

1. Pay up to our limit of liability for the damages for which an "insured" is legally liable; and
2. Provide a legal defense at our expense by counsel of our choice.

We may, at our discretion, investigate or settle any claim or lawsuit against an "insured". Our duty to pay or defend ends when the amount we pay for damages resulting from an "occurrence" equals our limit of liability by payment of a judgment or settlement.

COVERAGE F – MEDICAL PAYMENTS TO OTHERS

In the event of "bodily injury" due to an "occurrence", we will pay necessary medical expenses incurred within three years from the date of the "occurrence". Medical expenses means reasonable charges for medical, surgical, x-ray, dental, ambulance, hospital, professional nursing, prosthetic devices and funeral services. This coverage does not apply to any "insured". This coverage applies only:

1. To persons on the "insured location" with the permission of an "insured"; or
2. To persons off the "insured location", if the "bodily injury" is caused by:
 - a. A condition on the "insured location" or the ways immediately adjoining;
 - b. The activities of an "insured";
 - c. A "residence employee" in the course of the "residence employee's" employment by an "insured"; or
 - d. An animal to which coverage applies under this policy and that is owned by or in the care of an "insured" at the time of the "occurrence".

SECTION II – EXCLUSIONS

EXCLUSIONS APPLYING TO COVERAGE E

Coverage E does not apply to any of the following:

Loss Assessment	Liability for any loss assessment charged against you as a member of an association or community of property owners.
Contractual Liability	Liability assumed by an "insured" under any contract or agreement.
Property Owned	"Property damage" to property owned by an "insured" or any other resident of the "insured location".
Property Rented, Occupied, Used Or In Care Of	"Property damage" to property rented to, occupied by, used by or in the care of an "insured". This exclusion does not apply to "property damage" resulting from fire, smoke or explosion.
Liability Insured By A Nuclear Energy Liability Policy	"Bodily injury" or "property damage" for which an "insured" under this policy is also an insured under a nuclear energy liability policy or would be an insured under such a policy but for the exhaustion of its limit of liability. A nuclear energy liability policy is a policy issued by the Nuclear Energy Liability Insurance Association, the Mutual Atomic Energy Liability Underwriters, the Nuclear Insurance Association of Canada, or any of their successors.
"Bodily Injury" To Any "Insured"	"Bodily injury" to any "insured" as defined in the Definitions. This exclusion also applies to any claim or lawsuit brought against any "insured" to repay or share damages with another person who may be obligated to pay damages because of "bodily injury" to an "insured".
Punitive Damages	This policy does not provide any coverage for punitive or exemplary damages, fines or penalties in any amount regardless of how they are imposed. This exclusion includes, but is not limited to, those imposed by civil fine or penalty assessed or imposed under any code, statute, regulation or court order. This policy also does not provide any coverage for the cost of defense, including but not limited to attorney fees or costs, related to any such damages, fines or penalties.

EXCLUSIONS APPLYING TO COVERAGE F

Coverage F does not apply to any of the following types of "bodily injury":

"Residence Employee" Off Insured Location	"Bodily injury" to a "residence employee" if the "bodily injury" occurs off the "insured location" and does not arise out of or in the course of the "residence employee's" employment by an "insured".
Nuclear Reaction, Radiation, Or Contamination	"Bodily injury" from any nuclear reaction, nuclear radiation, radioactive contamination, (all whether controlled or uncontrolled or however caused) or any consequence of any of these.

"Bodily Injury" To Residents

"Bodily injury" to any person regularly residing at the "insured location". This exclusion does not apply to a "residence employee" of an "insured".

EXCLUSIONS APPLYING TO COVERAGES E AND F

Coverages E and F do not apply to any of the following:

**"Motor Vehicle",
"Aircraft", And
"Watercraft" Liability**

We do not cover liability for "bodily injury" or "property damage" arising out of the:

1. Ownership, maintenance, occupancy, operation, use, loading or unloading of a "motor vehicle", "aircraft", or "watercraft";
2. Entrustment of a "motor vehicle", "aircraft", or "watercraft" by an "insured" to any person;
3. Failure to supervise or negligent supervision of any person involving a "motor vehicle", "aircraft", or "watercraft" by an "insured"; or
4. Vicarious liability, whether or not imposed by law, for the actions of a child or minor involving a "motor vehicle", "aircraft", or "watercraft".

This exclusion does not apply to "watercraft" liability if, at the time of the "occurrence", the watercraft:

1. Is being stored;
2. Is a sailing vessel that is less than 26 feet in overall length;
3. Has inboard or inboard-outdrive engine or motor power of no more than 50 horsepower; or
4. Is powered by one or more outboard motors with cumulative power of no more than 25 horsepower;

Horsepower means the maximum power rating assigned to the engine or motor by the manufacturer.

Expected Or Intended Injury

"Bodily injury" or "property damage" caused by fire, which is expected or intended by the "insured", even if the resulting "bodily injury" or "property damage" is of a different kind, quality or degree than initially expected or intended or is sustained by a different person, entity or property than initially expected or intended.

"Bodily injury" or "property damage" caused by a peril other than fire, which is expected or intended by an "insured" even if the resulting "bodily injury" or "property damage" is of a different kind, quality or degree than initially expected or intended or is sustained by a different person, entity, or property, than initially expected or intended.

However, these exclusions do not apply to "bodily injury" or "property damage" resulting from the use of reasonable force by an "insured" to protect persons or property.

"Business"

"Bodily injury" or "property damage" arising out of or in connection with:

1. A "business" engaged in by an "insured" or conducted from an "insured location"; or
2. The rental or holding for rental of any part of the "insured location" by an "insured", regardless of the total annual compensation.

However, this exclusion does not apply to:

1. The rental or holding for rental of part of the "residence premises" for sole use as a residence to no more than two roomers or boarders, if disclosed on the application; or
2. An "insured" under the age of 21 years involved in a part-time or occasional, self-employed "business" with no employees.

Professional Services

"Bodily injury" or "property damage" arising out of the rendering of or failure to render professional services.

“Bodily Injury” To A Person Whom You Must Or Do Provide Benefits

"Bodily injury" to any person for whom an "insured" is required to provide or voluntarily provides benefits under any workers' compensation law, non-occupational disability law, or occupational disease law.

Loss On An "Insured's" Premises That Is Not An "Insured Location"

"Bodily injury" or "property damage" arising out of a premises:

1. Owned by an "insured";
2. Rented to an "insured"; or
3. Rented to others by an "insured";

that is not an "insured location".

War

"Bodily injury" or "property damage" caused directly or indirectly by war, including the following and any consequence of any of the following:

1. Declared war, undeclared war, civil war, insurrection, rebellion, revolution, warlike act by a military force or military personnel, discharge of a nuclear weapon even if accidental; or
2. Destruction, seizure or use for a military purpose.

Communicable Disease

"Bodily injury" or "property damage" which arises out of the transmission of a communicable disease or illness by an "insured".

Sexual Molestation, Corporal Punishment Or Physical Or Mental Abuse

"Bodily injury" or "property damage" arising out of sexual molestation, corporal punishment or physical or mental abuse.

Controlled Substance

"Bodily injury" or "property damage" arising out of the use, sale, manufacture, delivery, transfer or possession by any person of a Controlled Substance as defined by the Federal Food and Drug Law at 21 U.S.C.A. Sections 811 and 812. Controlled Substances include but are not limited to cocaine, LSD, marijuana and all narcotic drugs. However, this exclusion does not apply to the lawful use of prescription drugs by a person following the orders of a licensed health care provider.

Animals

"Bodily injury" or "property damage" caused, whether in whole or in part, by:

1. Any prohibited breed of dog;
2. Any exotic, farm or saddle animals; or
3. Any animal for which the owner has been notified by a state department that the animal has been deemed dangerous, vicious, or potentially dangerous under state law.

that is owned or kept, including temporary supervision, by you or any insured, resident, tenant, or guest whether or not the injury or damage occurs on the "residence premises" or elsewhere.

Prohibited breeds of dogs include Akitas, American Bulldogs, Chow Chows, Doberman Pinschers, Mastiffs, Pit Bulls, Rottweilers, Staffordshire Terriers, and Wolf hybrids. Any mixed breed made up of one or more of the breeds listed above is also considered a prohibited breed of dog.

Exotic, farm or saddle animals include but are not limited to hoofed animals, livestock, reptiles, primates, and fowl.

“Fungi”, Wet Or Dry Rot, Or Bacteria

"Bodily injury" or "property damage" arising directly or indirectly, in whole or part, out of the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, or presence of any "fungi", wet or dry rot, or bacteria.

“Fuel Systems”

"Bodily injury" or "property damage" arising out of, resulting from, caused by or contributed to by the escape or release of liquid fuel from a "fuel system". This exclusion applies, but is not limited to:

1. Any supervision, instructions, recommendations, warnings or advice given in connection with

the above;

2. Any obligation to share damages, losses, costs, payments or expenses with or repay someone else who must make payment because of such "bodily injury" or "property damage", damages, loss, cost, payment or expense; or
3. Any request, order or requirement to test for, monitor, abate, mitigate, remediate, contain, remove, dispose of, or in any way respond to or assess the effects of liquid fuel.

However, this exclusion does not apply to "bodily injury" or "property damage" arising out of fire or explosion resulting from such escaped or released liquid fuel.

Illegal Or Criminal Acts

"Bodily injury" or "property damage" resulting from any illegal or criminal act performed by, at the direction of, or in conspiracy with any "insured". This exclusion applies regardless of whether the "insured" is charged with a crime.

Exclusions "Motor Vehicle", "Aircraft", and "Watercraft" Liability and "Loss On An "Insured's" Premises That Is Not An "Insured Location"" do not apply to "bodily injury" to a "residence employee" arising out of and in the course of the "residence employee's" employment by an "insured".

SECTION II – ADDITIONAL COVERAGES

We cover the following in addition to the limits of liability:

Claim Expenses

We pay:

1. Expenses we incur and costs taxed against an "insured" in any lawsuit we defend;
2. Premiums on bonds required in a lawsuit we defend, but not for bond amounts more than the Coverage E limit of liability. We have no obligation to apply for or furnish any bond;
3. Reasonable expenses incurred by an "insured" at our request, including actual loss of earnings (but not loss of other income) up to \$250 per day, for assisting us in the investigation or defense of a claim or lawsuit; and
4. Interest on the entire judgment which accrues after entry of the judgment and before we pay or tender, or deposit in court that part of the judgment which does not exceed the limit of liability that applies.

First Aid Expenses

We will pay expenses for first aid to others incurred by an "insured" for "bodily injury" covered under this policy. We will not pay for first aid to an "insured".

Damage To Property Of Others

We will pay, at replacement cost, up to \$1,000 per "occurrence" for "property damage" to property of others caused by an "insured".

We will not pay for "property damage":

1. To the extent of any amount recoverable under Section I;
2. Caused intentionally by an "insured" who is 13 years of age or older;
3. To property owned by an "insured";
4. To property owned by or rented to a tenant of an "insured" or a resident in your household; or
5. Arising out of:
 - a. A "business" engaged in by an "insured";
 - b. Any act or omission in connection with a premises owned, rented or controlled by an "insured", other than the "insured location"; or
 - c. The ownership, maintenance, occupancy, operation, use, loading or unloading of "aircraft", "watercraft" or "motor vehicles".

This exclusion does not apply to a "motor vehicle" that:

- (1) Is designed for recreational use off public roads;
- (2) Is not owned by an "insured"; and
- (3) At the time of the "occurrence", is not required by law, or regulation issued by a government agency, to have been registered for it to be used on public roads or property.

Loss Assessment

We will pay up to \$1,000 for your share of loss assessment charged against you, as owner or tenant of the "residence premises", during the policy period by an association of property owners, when the assessment is made as a result of:

1. "Bodily injury" or "property damage" not excluded from coverage under Section II – Exclusions; or
2. Liability for an act of a director, officer or trustee in the capacity as a director, officer or trustee, provided such person:
 - a. Is elected by the members of a corporation or association of property owners; and
 - b. Serves without deriving any income from the exercise of duties which are solely on behalf of a corporation or association of property owners.

Section II – Condition, Policy Period does not apply to this Loss Assessment Coverage.

Regardless of the number of assessments, the limit of \$1,000 is the most we will pay for loss arising out of:

1. One accident, including continuous or repeated exposure to substantially the same general harmful condition; or
2. A covered act of a director, officer or trustee. An act involving more than one director, officer or trustee is considered to be a single act.

We do not cover assessments charged against you or a corporation or association of property owners by any governmental body.

SECTION II – CONDITIONS

Limit Of Liability

Our total liability under Coverage E for all damages resulting from any one "occurrence" will not be more than the Coverage E limit of liability shown in the Declarations. This limit is the same regardless of the number of "insureds", claims made or persons injured. All "bodily injury" and "property damage" resulting from any one accident or from continuous or repeated exposure to substantially the same general harmful conditions shall be considered to be the result of one "occurrence".

Our total liability under Coverage F for all medical expense payable for "bodily injury" to one person as the result of one accident will not be more than the Coverage F limit of liability shown in the Declarations.

What Must Be Done After A Loss

In case of an "occurrence", you or another "insured" will perform the following duties that apply. We have no duty to provide coverage under this policy if your failure to comply with the following duties is prejudicial to us. You will help us by seeing that these duties are performed:

1. Give written notice to us or our agent as soon as is practical, which sets forth:
 - a. The identity of the policy and the "named insured" shown in the Declarations;
 - b. Reasonably available information on the time, place and circumstances of the "occurrence"; and
 - c. Names and addresses of any claimants and witnesses;
2. Cooperate with us in the investigation, settlement or defense of any claim or suit;
3. Promptly forward to us every notice, demand, summons or other process relating to the "occurrence";
4. At our request, help us:

	a. To make settlement; b. To enforce any right of contribution or indemnity against any person or organization who may be liable to an "insured"; c. With the conduct of suits and attend hearings and trials; and d. To secure and give evidence and obtain the attendance of witnesses; 5. With respect to Damage To Property Of Others under Section II – Additional Coverages, submit to us within 60 days after the loss, a sworn statement of loss and show the damaged property, if in an "insured's" control; 6. No "insured" shall, except at such "insured's" own cost, voluntarily make payment, assume obligation or incur expense other than for first aid to others at the time of the "bodily injury".
Duties Of An Injured Person – Coverage F – Medical Payments To Others	The injured person or someone acting for the injured person will: 1. Give us written proof of claim, under oath if required, as soon as is practical; and 2. Authorize us to obtain copies of medical reports and records. The injured person will submit to a physical exam by a doctor of our choice when and as often as we reasonably require.
Payment Of Claim – Coverage F – Medical Payments To Others	Payment under this coverage is not an admission of liability by an "insured" or us.
Bankruptcy Of An "Insured"	Bankruptcy or insolvency of an "insured" will not relieve us of our obligations under this policy.
Other Insurance	This insurance is excess over other valid and collectible insurance except insurance written specifically to cover as excess over the limits of liability that apply in this policy.
Severability Of Insurance	This insurance applies separately to each "insured". This condition will not increase our limit of liability for any one "occurrence".
Policy Period	This policy applies only to "bodily injury" or "property damage" which occurs during the policy period.
Concealment Or Fraud	We do not provide coverage to any "insured" who, whether before or after a loss, has: 1. Intentionally concealed or misrepresented any material fact or circumstance; 2. Engaged in fraudulent conduct; or 3. Made false statements; relating to this insurance. However, if the conduct specified above is in relation to the procurement of the contract or occurs subsequent to the issuance of the contract, but if known to us would have caused us not to issue the policy, coverage will only be denied if the conduct was committed with the intent to deceive.

SECTION I AND II – CONDITIONS

Liberalization Clause	If we make a change which broadens coverage under this edition of our policy without additional premium charge, that change will automatically apply to your insurance as of the date we implement the change in your state, provided that this implementation date falls within 60 days prior to or during the policy period stated in the Declarations.
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This Liberalization Clause does not apply to changes implemented with a general program revision that includes both broadenings and restrictions in coverage, whether that general program revision is implemented through introduction of:

1. A subsequent edition of this policy; or
2. An amendatory endorsement.

Waiver Or Change Of Policy Provisions

A waiver or change of a provision of this policy must be in writing by us to be valid. Our request for an appraisal or examination will not waive any of our rights.

Cancellation

The Cancellation provisions are as follows:

1. You may cancel this policy at any time by returning it to us or by letting us know in writing of the date cancellation is to take effect.
2. The following applies with respect to premium payments due on new and renewal policies, including installment payments:
 - a. If your premium payment check or other negotiable instrument is returned to us or our agent or a premium finance company because it is uncollectible for any reason, we may cancel the policy subject to Paragraphs 2.b. and 2.c. below.
 - b. We may cancel the policy effective from the date the premium payment was due, by sending you written notice by certified mail, or by delivering such notice to you within 10 days of the date that we receive notice of the returned check or negotiable instrument.
 - c. The cancellation notice will also advise you that the policy will be reinstated effective from the date the premium payment was due if you present to us a cashier's check or money order for the full amount of the returned check or other negotiable instrument within 10 days of the date that the cancellation notice was mailed.
3. The following applies if the Paragraph 2. above does not apply:

We may cancel this policy only for the reasons stated below by letting you know in writing of the date the cancellation takes effect. This cancellation notice may be delivered to you, or mailed to you at your mailing address shown in the Declarations. Proof of mailing will be sufficient proof of notice.

- a. When you have not paid the premium, we may cancel at any time by letting you know at least 10 days before the date cancellation takes effect.
- b. When this policy has been in effect for less than 60 days and is not a renewal with us, we may cancel for any reason by letting you and any other person shown by the policy to have an interest in any loss which may occur thereunder know at least 30 days before the date cancellation takes effect.
- c. When this policy has been in effect for 60 days or more, or at any time if it is a renewal with us, except as provided in Paragraph 3.e. below, we may cancel:
 - (1) If there has been a material misrepresentation of fact with the intent to deceive, in the procurement of the contract or at any time since the policy was issued, which if known to us would have caused us not to issue the policy; or
 - (2) If the risk has changed substantially since the policy was issued.

This can be done by letting you and any other known person shown by the policy to have an interest in any loss which may occur thereunder know at least 30 days before the date cancellation takes effect.

- d. When this policy is written for a period of more than one year and three years or less, we may cancel for any reason at anniversary by letting you and any other known person shown by the policy to have an interest in any loss which may occur thereunder know at least 30 days before the date cancellation takes effect.
- e. When this policy has been in effect and renewed for more than three years, we may cancel for any one of the following reasons:
 - (1) If you have committed fraud with the intent to deceive:
 - (a) In the procurement of the contract; or
 - (b) At any other time since the policy was issued;

- (2) If the insured risk has undergone a material change;
- (3) If you have filed two or more claims that are not the result of an incident which is:
 - (a) Due directly to forces of nature; and
 - (b) Exclusively without human intervention;
 within a continuous three-year period within the five years preceding the current policy renewal date; or
- (4) If the continuation of this policy endangers our solvency.

This can be done by letting you and any other known person shown by the policy to have an interest in any loss which may occur thereunder know at least 30 days before the date cancellation takes effect.

We will not, however, cancel this policy, regardless of the period of time this policy has been in effect, based solely upon a loss caused by an Act of God. An Act of God means an incident due directly to natural causes and exclusively without human intervention

- 4. If this policy is canceled, we will return any premium refund due, subject to Paragraphs a., b., and c. below. The cancellation will be effective even if we have not made or offered a refund.
 - a. If you cancel this policy, we will refund the return premium, if any, within 30 days after the date cancellation takes effect. The return premium shall be computed on a pro rata basis, subject to the minimum premium requirements.

We will send the refund to you and any mortgagee that has provided us with written notice of the percentage of the premium being funded with the mortgagee's own funds. The percentage of the unearned premium attributable to the mortgagee shall be returned to the mortgagee and the percentage of the unearned premium attributable to you shall be returned to you.
 - b. If we cancel this policy, and the return premium is not refunded with the notice of cancellation, we will refund it within a reasonable time after the date cancellation takes effect. We will send the refund to you, or your agent, unless Paragraph 4.c. below applies. If the premium is refunded to your agent, we will notify you, at the time of cancellation, that a return of unearned premium may be generated by the cancellation.
 - c. If we cancel based on Paragraph 2. above, we will return the premium due, if any, within 10 days after the expiration of the 10-day period referred to in 2.c. If the policy was financed by a premium finance company, or if payment was advanced by the insurance agent, we will send the return premium directly to such payor.

Nonrenewal

The Nonrenewal provisions are as follows:

- 1. We may elect not to renew this policy, subject to Paragraphs 2. and 3. below. We may do so by delivering to you and any other known person shown by the policy to have an interest in any loss which may occur thereunder, or mailing to you at your mailing address shown in the Declarations and to any other known person shown by the policy to have an interest in any loss which may occur thereunder, written notice at least 30 days before the expiration date of this policy. Proof of mailing will be sufficient proof of notice.
- 2. If this policy has been in effect and renewed with us for more than three years, we will not exercise our right of nonrenewal except:
 - a. When you have not paid the premium;
 - b. If you have committed fraud;
 - c. If the insured risk has undergone a substantial change;
 - d. If you have filed two or more claims that are not the result of an incident which is:
 - (1) Due directly to forces of nature; and
 - (2) Exclusively without human intervention;
 within a continuous three-year period of time within the five years preceding the current policy renewal date; or
 - e. If the continuation of this policy endangers our solvency.
- 3. We will not, however, exercise our right of nonrenewal, regardless of the period of time this

policy has been in effect with us, based solely upon a loss caused by an Act of God. An Act of God means an incident due directly to natural causes and exclusively without human intervention.

Assignment

Assignment of this policy will not be valid unless we give our written consent.

Subrogation

An "insured" may waive in writing before a loss all rights of recovery against any person. If not waived, we may require an assignment of rights of recovery for a loss to the extent that payment is made by us. If an assignment is sought, an "insured" must sign and deliver all related papers and cooperate with us. Subrogation does not apply to Coverage F or to Damage To Property Of Others under Section II – Additional Coverages.

If we pay an "insured" for a loss caused by another "insured" who intentionally commits, or directs another to commit, any act that results in loss by fire, the rights of the "insured" to recover damages from the "insured" who intentionally committed, or directed another to commit, such an act are transferred to us to the extent of our payment. The "insured" may not waive such rights.

Death

If any person named in the Declarations or the spouse, if a resident of the same household, dies, the following apply:

1. We insure the legal representative of the deceased but only with respect to the premises and property of the deceased covered under the policy at the time of death; and
2. "Insured" includes:
 - a. An "insured" who is a member of your household at the time of your death, but only while a resident of the "residence premises"; and
 - b. With respect to your property, the person having proper temporary custody of the property until appointment and qualification of a legal representative.

**Our Right To
Recompute Premium**

We established the premium for this policy based on the statements you made in the application for insurance. We have the right to recompute the premium if we later obtain information which affects the premium we charged.

Our Right To Inspect

We reserve the right to conduct interior and exterior inspections of your "insured location" upon reasonable notice as often as we deem reasonably necessary. You must permit inspections and cooperate with us during the inspection process.

DEFINITIONS

In this policy, "you" and "your" refer to the "named insured" shown in the Declarations and the spouse if a resident of the same household. "We", "us" and "our" refer to the Company providing this insurance.

In addition, certain words and phrases appear in quotations and are defined as follows:

"Actual cash value"

means the reasonable replacement cost at the time of the loss less deduction for depreciation.

"Aircraft"

means any contrivance used or designed for flight except model or hobby aircraft not used or designed to carry people or cargo.

"Bodily injury"

means physical harm to the body, including sickness or disease, and resulting death except that "bodily injury" does not include communicable diseases.

"Business"

means:

1. A trade, profession or occupation engaged in on a full-time, part-time or occasional basis; or
2. Any other activity engaged in for money or other compensation, except the following:
 - a. One or more activities, not described in b. through d. below, for which no "insured" receives more than \$2,000 in total compensation for the 12 months before the beginning of the policy period;
 - b. Volunteer activities for which no money is received other than payment for expenses incurred to perform the activity;
 - c. Providing home day care services for which no compensation is received, other than the mutual exchange of such services; or
 - d. The rendering of home day care services to a relative of an "insured".

"Employee"

means an employee of an "insured", or an employee leased to an "insured" by a labor leasing firm under an agreement between an "insured" and the labor leasing firm, whose duties are other than those performed by a "residence employee".

"Fuel Systems"

means:

1. One or more containers, tanks or vessels which have a total combined liquid fuel storage capacity of 100 or more U.S. gallons; and:
 - a. Are, or were, used to hold liquid fuel; and
 - b. Are, or were, located on any one location;
2. Any pumping apparatus, which includes the motor, gauge, nozzle, hose or pipes that are, or were, connected to one or more containers, tanks or vessels described in Paragraph 1.;
3. Filler pipes and flues connected to one or more containers, tanks or vessels described in Paragraph 1.;
4. A boiler, furnace or a water heater, the liquid fuel for which is stored in a container, tank or vessel described in Paragraph 1.;
5. Fittings and pipes connecting the boiler, furnace or water heater to one or more containers, tanks or vessels described in Paragraph 1.; or
6. A structure that is specifically designed and built to hold escaped or released liquid fuel from one or more containers, tanks or vessels described in Paragraph 1.

A "fuel system" does not include any fuel tanks that are permanently affixed to a motor vehicle or watercraft owned by an "insured", used for powering the motor vehicle or watercraft and not used at any time or in any manner for "business".

"Fungi"

means any type or form of fungus, including mold or mildew, and any microtoxins, spores, scents or by-products produced or released by fungi.

"Insured"

means:

1. You and residents of your household who are:
 - a. Your relatives; or
 - b. Other persons under the age of 21 and in the care of any person named above;
2. A student enrolled in school full time, as defined by the school, who was a resident of your household before moving out to attend school, provided the student is under the age of:
 - a. 24 and your relative; or
 - b. 21 and in your care or the care of a person described in 1.a. above; or
3. Under Section II:
 - a. With respect to animals or watercraft to which this policy applies, any person or organization legally responsible for these animals or watercraft which are owned by you or any person included in 1. or 2. above. "Insured" does not mean a person or organization

using or having custody of these animals or watercraft in the course of any "business" or without consent of the owner; or

b. With respect to a "motor vehicle" to which this policy applies:

(1) Persons while engaged in your employ or that of any person included in 1. or 2. above; or

(2) Other persons using the vehicle on an "insured location" with your consent.

Under both Sections I and II, when the word an immediately precedes the word "insured", the words an "insured" together mean one or more "insureds".

"Insured location"

means:

1. The "residence premises";
2. The part of other premises, other structures and grounds used by you as a residence; and
 - a. Which is shown in the Declarations; or
 - b. Which is acquired by you during the policy period, is reported to us within 30 days of your acquisition, and is for your use as a residence;
3. Any premises used by you in connection with a premises described in 1. and 2. above;
4. Any part of a premises:
 - a. Not owned by an "insured"; and
 - b. Where an "insured" is temporarily residing;
5. Vacant land, other than farm land, owned by or rented to an "insured";
6. Land owned by or rented to an "insured" on which a one, two, three or four family dwelling is being built as a residence for an "insured";
7. Individual or family cemetery plots or burial vaults of an "insured"; or
8. Any part of a premises occasionally rented to an "insured" for other than "business" use.

"Motor vehicle"

means:

1. A self-propelled land or amphibious vehicle; or
2. Any trailer or semitrailer which is being carried on, towed by or hitched for towing by a vehicle described in 1. above.

"Motor vehicle" does not include a vehicle that is:

1. In dead storage on an "insured location" at the time of an "occurrence";
2. Not subject to motor vehicle registration and is used solely to service the "residence premises";
3. Designed for recreational use off public roads and not owned by an "insured";
4. A motorized wheelchair:
 - a. Being used to assist a handicapped person at the time of an "occurrence"; or
 - b. Parked on an "insured location" at the time of an "occurrence"; or
5. A motorized golf cart that is owned by an "insured", designed to carry no more than 4 persons, not built or modified after manufacture to exceed a speed of 25 miles per hour on level ground and, at the time of an "occurrence", is within the legal boundaries of:
 - a. A golf course and is being used to play golf; or
 - b. A golfing facility and is parked or stored there, or being used by an "insured" to:
 - (1) Travel to or from an area where "motor vehicles" or golf carts are parked or stored; or
 - (2) Cross public roads at designated points to access other parts of the golfing facility.

"Occurrence"

means an accident, including exposure to harmful conditions, which results during the policy period, in:

1. "Bodily injury"; or
2. "Property damage".

Repeated or continuous exposure to the same general harmful conditions is considered to be one

"occurrence".

"Occurrence" does not include accidents or events which take place during the policy period which do not result in "bodily injury" or "property damage" until after the policy period.

"Property damage"

means physical injury to or destruction of tangible property, including loss of its use as a result of its physical injury or destruction.

"Residence employee"

means an employee of an "insured" who performs duties related to the maintenance or use of the "residence premises", including household or domestic services.

"Residence premises"

means:

1. The one family dwelling, other structures, and grounds; or
2. That part of any other building;

where you reside and which is shown as the "residence premises" on the Declarations.

"Residence premises" also means a two family dwelling where you reside in at least one of the family units and which is shown as the "residence premises" in the Declarations.

"Watercraft"

means a craft principally designed to be propelled on or in water by wind, engine power or electric motor.

"Vacant"

means the dwelling lacks the necessary amenities, adequate furnishings, or utilities and services to permit occupancy of the dwelling as a residence.

"Unoccupied"

means the dwelling is not being inhabited as a residence.

No Section II – Liability Coverages and Limited Section I – Property Coverages for Home Day Care Business

“Business”

as defined in the base policy means:

1. A trade, profession or occupation engaged in on a full-time, part-time, or occasional basis; or
2. Any other activity engaged in for money or other compensation, except the following:
 - a. One or more activities, not described in **b.** through **d.** below, for which no "insured" receives more than \$2,000 in total compensation for the 12 months before the beginning of the policy period;
 - b. Volunteer activities for which no money is received other than payment for expenses incurred to perform the activity;
 - c. Providing home day care services for which no compensation is received, other than the mutual exchange of such services; or
 - d. The rendering of home day care services to a relative of an "insured".

Home Day Care Business

If an "insured" regularly provides home day care services to a person or persons other than "insureds" as their trade, profession or occupation, that service is a "business".

If home day care service is not a given "insured's" trade, profession or occupation but is an activity:

1. That an "insured" engages in for money or other compensation; and
2. From which an "insured" receives more than \$2,000 in total/combined compensation from and any other activity for the 12 months before the policy period;

the home day care service and other activity will be considered a "business".

With respect to the Home Day Care Business Paragraphs above, home day care service is only an example of an activity engaged in for money that may be a "business". Any single activity or combination of activities described in "Business" Paragraph **2.** above and engaged in for money by a single "insured" may be considered a "business" if the \$2,000 threshold is exceeded.

No Section II – Liability Coverages, Limited Section I – Property Coverages

With respect to Items "Business" and Home Day Care Business above, coverage does not apply to or is limited with respect to home day care service that is a "business". For example, this policy:

1. Does not provide:
 - a. Section II coverages. This is because a "business" of an "insured" is excluded under Section II – Exclusions, Exclusions Applying To Coverages E And F, Item "Business";
 - b. Coverage under Section I, for other structures from which any "business" is conducted; and
2. Limits coverage under Section I – Property Coverages, Coverage C – Personal Property, Special Limits of Liability for "business" property:
 - a. On the "residence premises" for the home day care "business" to \$2,500. This is because Special Limits of Liability, Category **5.c.** imposes that limit on all "business" property located on the "residence premises".
 - b. Away from the "residence premises" for the home day care "business" to \$1,500. This is because Special Limits of Liability, Category **3.g.** imposes that limit on "business" property away from the "residence premises". Category **3.g.** does not apply to property described in Special Limits of Liability, Categories **3.e.** and **3.f.**

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Equipment Breakdown Endorsement

For an additional premium, we will provide insurance as described in this endorsement.

Equipment Breakdown Coverage

With respect to the coverage provided by this endorsement, and subject to the conditions and exclusions in this endorsement and your policy, we will provide the following:

1. With regard to Coverage A – Dwellings, Coverage B – Other Structures, and Coverage C – Personal Property, we will pay for direct physical loss to “covered equipment” caused by a “breakdown”.
2. With regard to Coverage D – Loss of Use, if a loss to “covered equipment” caused by a “breakdown” causes the “residence premises” to become uninhabitable, we will pay for any necessary increase in living expenses you incur to maintain your normal standard of living. Payment will be for the shortest time required to repair or replace the premises or permanently settle your household elsewhere.

The limit of insurance provided by this endorsement is specifically listed on the “Declarations Page” under Equipment Breakdown Endorsement. The Equipment Breakdown Endorsement limit does not increase the limits of liability for any other coverage listed on the “Declarations Page”.

Equipment Breakdown Coverage Extension

With respect to coverage provided by this endorsement, we provide the following additional coverage for loss caused by or resulting from a “breakdown” to “covered equipment”. The limits of insurance for these Coverage Extensions are part of, not in addition to, the limit applicable to this endorsement as shown in Paragraph 1. of Limit of Liability.

1. Pollutants

We will pay for the additional cost to repair or replace covered property because of contamination by “pollutants”. This includes the additional expenses to clean up or dispose of such property. We will also pay the cost to extract “pollutants” from land or water on the “insured location”.

Additional costs mean those in excess of what would have been required to repair or replace damage to covered property had no “pollutants” been involved.

The most we pay for loss, damage, or expense under this Coverage Extension, is \$10,000.

2. Sump Overflow Coverage

We will pay for direct physical loss to covered property caused by or resulting from the overflow of water or waterborne material from a sump if such overflow is the result of a “breakdown” to “covered equipment” that is a sump pump or any other “covered equipment” necessary to operate that sump pump.

The most we pay for loss, damage, or expense for Sump Overflow Coverage, is \$2,500.

We will not pay for any loss or damage under this Sump Overflow Coverage if such loss or damage is covered elsewhere by the policy, regardless of any applicable deductible, or whether you can collect on it or not.

This coverage applies despite paragraph 3. of the applicable water damage exclusion in the policy to which this endorsement attaches.

3. Expediting Costs

With respect to direct physical loss to covered property, we will pay the reasonable extra cost you necessarily incur to:

- a. Make temporary repairs to; or
- b. Expedite the permanent repairs or replacement of; the damaged property.

With respect to the coverage provided by this endorsement, the following Exclusion applies:

**Equipment
Breakdown Exclusion**

We will not pay for loss caused directly or indirectly by or resulting from any of the following:

1. Fire Or Lightning;
2. Windstorm Or Hail;
3. Explosion;
4. Riot Or Civil Commotion;
5. Vehicles;
6. Smoke;
7. Vandalism Or Malicious Mischief;
8. Theft;
9. Falling Objects;
10. Weight Of Ice, Snow Or Sleet;
11. Freezing;
12. Water or Steam; or
13. Collapse.

Such loss is excluded regardless of any other cause or event contributing concurrently or in any sequence to the loss. These exclusions apply whether or not the loss event results in widespread damage or affects a substantial area.

However, we will pay for a "breakdown" to "covered equipment" if any of the following occurs away from the "residence premises" shown in the declarations:

1. Fire;
2. Explosion;
3. Riot Or Civil Commotion;
4. Vehicles;
5. Lightning;
6. Smoke;
7. Vandalism Or Malicious Mischief; or
8. Theft;

and causes an electrical surge or other electrical disturbance that comes through utility transmission lines.

With respect to the coverage provided by this endorsement, the following Conditions apply:

Limit Of Liability

1. The most we will pay for a loss covered under this endorsement is \$100,000.
2. The most we will pay for a loss involving the spoilage of perishable property is \$10,000. This amount is part of not in addition to the amount in Paragraph 1. above.

The limit of insurance provided by this endorsement is specifically listed on the "Declarations Page" under Equipment Breakdown Endorsement. The Equipment Breakdown Endorsement limit does not increase the limits of liability for any other coverage listed on the "Declarations Page".

How A Loss Will Be Settled

The following provision applies to the coverage provided by this endorsement in addition to the provisions in How A Loss Will Be Settled of Section I – CONDITIONS.

New Generation

If “covered equipment” cannot be repaired or the cost to repair is more than the cost to replace, the following provision may be chosen:

If you want to replace the damaged “covered equipment” with materials that are safer, conserve natural resources, reduce energy or water consumption, avoid toxic or other polluting emissions or otherwise minimize the environmental impact, we will pay up to 50% more than “covered equipment” of like kind and quality would have cost at the time of the “breakdown” including such costs required to attain green or other environmental certifications.

Deductible For This Coverage

For losses covered under this EQUIPMENT BREAKDOWN ENDORSEMENT, we will pay only that part of loss, damage or expense that exceeds \$500. If a loss is covered under this EQUIPMENT BREAKDOWN ENDORSEMENT, the deductible for this additional coverage is separate and apart or in addition to any other applicable deductible that applies to any ensuing loss.

Application of Coverage

If a loss covered under this EQUIPMENT BREAKDOWN ENDORSEMENT is also covered elsewhere in this policy, the coverage provided by this EQUIPMENT BREAKDOWN ENDORSEMENT is excess over any amount covered elsewhere in this policy.

With respect to the coverage provided by this endorsement, the following Definitions apply:

“Breakdown”

Means a fortuitous event that causes direct physical damage to “covered equipment” caused by the following:

1. Electrical failure caused by artificially generated electric current, including arcing;
2. Failure of pressure or vacuum equipment; or
3. Mechanical failure including rupture or bursting caused by centrifugal force.

At the time the “breakdown” occurs, it must manifest itself by physical damage to the “covered equipment” that necessitates repair or replacement.

“Breakdown” does not mean:

1. Defects, erasures, errors, limitations or viruses in “computer equipment”, “data”, “media”, and/or programs including the inability to recognize and process any date or time or provide instructions to “covered equipment”. However, if “breakdown” to “covered equipment” ensues, we will pay the ensuing loss or damage not otherwise excluded;
2. Functioning of any safety or protective device;
3. Leakage at any valve, fitting, shaft seal, gland packing, joint or connection; or
4. Malfunction including but not limited to adjustment, alignment, calibration, cleaning or modification.

“Computer Equipment”

Means:

1. Your programmable electronic equipment that is used to store, retrieve and process data; and
2. Associated peripheral equipment that provides communication including input and output functions such as printing or auxiliary functions such as data transmission.

It does not include “data” or “media”.

“Covered Equipment”

Means and includes any:

1. Equipment designed and built to operate under internal pressure or vacuum other than weight of contents;
2. Electrical or mechanical equipment that is used in the generation, transmission or utilization of

- energy;
- 3. Communication equipment and "computer equipment";
- 4. Fiber optics; or
- 5. Outside yard maintenance equipment with power measuring equal to or less than 25hp, including but not limited to lawn mowers, garden tractors, snow removal equipment, weed whackers, chain saws, log splitters, wood chippers and blowers.

"Covered equipment" does not mean or include any:

- 1. "Media";
- 2. Insulating or refractory material;
- 3. Pressure vessels and piping that are buried below ground and require the excavation of materials to inspect, remove, repair or replace.
- 4. Structure, foundation, cabinet or compartment supporting or containing the "covered equipment" or part of the "covered equipment" including well casing;
- 5. Motor vehicle, tractor or watercraft, including any "covered equipment" mounted on or used solely with any motor vehicle, tractor or watercraft;
- 6. Outside yard maintenance equipment with power measuring greater than 25 hp, including but not limited to lawn mowers, garden tractors, snow removal equipment, weed whackers, chain saws, log splitters, wood chippers and blowers.
- 7. Excavation or construction equipment including any "covered equipment" mounted on or used solely with any excavation or construction equipment.

"Data"

Means:

- 1. Programmed and recorded material stored on "media" and
- 2. Programming records used for electronic data processing, or electronically controlled equipment.

"Media"

Means electronic data processing or storage material such as films, tapes, discs, drums or cells. However, "media" does not include any hard disc drive that is an internal component of "computer equipment".

All other conditions and provisions of the homeowners policy apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Hurricane Deductible – Louisiana

SCHEDULE*

"Hurricane" Deductible:

*Entries may be left blank for this coverage if shown in the Policy Declarations.

Under DEFINITIONS, the following is added to your policy:

"Hurricane"	means a storm system that has been declared a hurricane by the National Hurricane Center of the National Weather Service.
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Under SECTION I – CONDITIONS, the following deductible provisions are added to your policy:

"Hurricane" Deductible	Applicable "Hurricane" Deductible 1. The applicable "hurricane" deductible: a. Is either: (1) The dollar amount shown in the Schedule as the "Hurricane" Deductible; or (2) If a percentage is shown in the Schedule, the dollar amount determined by multiplying the Coverage A Limit of Liability shown in the Policy Declarations by the percentage shown as the "Hurricane" Deductible in the Schedule. 2. Shall apply during the period: a. Beginning at the time a "hurricane" watch or "hurricane" warning is issued for any part of the state of Louisiana by the National Hurricane Center of the National Weather Service; b. Continuing for the time period which the "hurricane" conditions exist anywhere in the state; and c. Ending 24 hours following the termination of the last "hurricane" watch or "hurricane" warning for any part of the state of Louisiana by the National Hurricane Center of the National Weather Service. Standard "Hurricane" Deductible 1. With respect to the peril of Windstorm or Hail, for any one loss, we will pay only that part of the total of all loss payable that exceeds the applicable "hurricane" deductible described in Paragraph Applicable "Hurricane" Deductible above. 2. Except as provided in Paragraph Calendar Year "Hurricane" Deductible below, no other deductible applies to loss caused by the peril of Windstorm or Hail during the period described in Paragraph 2. of Applicable "Hurricane" Deductible above. 3. Refer to the Policy Declarations for the deductible that applies to loss caused by the peril of Windstorm or Hail other than during the period described in Paragraph 2. of Applicable "Hurricane" Deductible above.
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Calendar Year "Hurricane" Deductible

The following provisions apply only if the "residence premises" is a one- or two-family owner-occupied dwelling:

1. Subject to Paragraph 2. below of Calendar Year "Hurricane" Deductible, the applicable "hurricane" deductible described in Paragraph Applicable "Hurricane" Deductible is a calendar year deductible and applies to all covered windstorm or hail losses resulting from one or more "hurricanes" during the same calendar year.
2. With respect to a covered windstorm or hail loss:
 - a. Resulting from the first "hurricane" during a calendar year, we will pay only that part of the total of all loss payable that exceeds the applicable "hurricane" deductible described in Paragraph Applicable "Hurricane" Deductible above.
 - b. Resulting from the second, and each subsequent, "hurricane" during the same calendar year, we will pay only that part of the total of all loss payable that exceeds the greater of:
 - (1) The remaining dollar amount of the applicable "hurricane" deductible described in Paragraph Applicable "Hurricane" Deductible above for that calendar year; or
 - (2) The deductible that applies to all perils other than Windstorm or Hail.
3. You must maintain receipts or other records of all covered windstorm or hail losses, resulting from any "hurricane", that are less than the applicable "hurricane" deductible, and provide us with such receipts or other records as often as we reasonably require, so that we may consider the amount of such losses when adjusting claims resulting from any subsequent "hurricane" during the same calendar year.
4. Paragraph Standard "Hurricane" Deductible above does not apply.
5. No other deductible applies to loss caused by the peril of Windstorm or Hail during the period described in Paragraph 2. of Applicable "Hurricane" Deductible above.
6. Refer to the policy Declarations for the deductible that applies to loss caused by the peril of Windstorm or Hail other than during the period described in Paragraph 2. of Applicable "Hurricane" Deductible above.

All other provisions of your policy apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Increased Replacement Cost Coverage - Louisiana

For an additional premium, and if you have notified us within 90 days of the start of any alterations to the insured building(s) which increase the replacement cost of the building(s) by \$10,000 or more when applicable, your policy is changed as follows:

With respect to the coverage provided under this endorsement, SECTION I – CONDITIONS, item How A Loss Will Be Settled, Paragraph 2.a. is replaced by the following:

How A Loss Will Be Settled

- a. We will pay the cost to repair or replace, after application of any deductible and without deduction for depreciation, but not more than the least of the following amounts:
 - (1) For buildings covered under Coverage A, the limit of liability shown on the Declarations page for Coverage A – Dwelling increased by 25%;
 - (2) For buildings covered under Coverage B, the limit of liability shown on the Declarations page for Coverage B – Other Structures;
 - (3) The replacement cost of that part of the building damaged with material of like kind and quality; or
 - (4) The necessary amount actually spent to repair or replace the damaged building.If the building is rebuilt at a new premises, the cost described in (3) above is limited to the cost which would have been incurred if the building had been built at the original premises.

This coverage is intended to protect you from unforeseen increases in construction costs. We will not increase the stated limit to cover loss caused by ordinances or laws that regulate the construction, repair, or demolition of this property.

All other provisions of your policy apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Personal Injury - Louisiana

For additional premium, your policy is changed as follows:

Under **DEFINITIONS**, the following is added to your policy:

"Personal injury"	means injury arising out of one or more of the following offenses, but only if the offense was committed during the policy period: 1. False arrest, detention or imprisonment; 2. Malicious prosecution; 3. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor; 4. Oral, written or electronic publication of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services; or 5. Oral, written or electronic publication of material that violates a person's right of privacy.
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Under **SECTION II – LIABILITY COVERAGES, COVERAGE E – PERSONAL LIABILITY**, the following is added:

"Personal Injury" Coverage	If a claim is made or suit is brought against an "insured" for damages resulting from an offense, defined under "personal injury", to which this coverage applies, we will: 1. Pay up to our limit of liability for the damages for which an "insured" is legally liable. Damages include prejudgment interest awarded against an "insured"; and 2. Provide a defense at our expense by counsel of our choice, even if the suit is groundless, false or fraudulent. We may investigate and settle any claim or suit that we decide is appropriate. Our duty to settle or defend ends when our limit of liability for the offense has been exhausted by payment of a judgment or settlement.
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With respect to the coverage provided under this endorsement, **SECTION II – EXCLUSIONS** is replaced by the following:

"Personal injury" coverage does not apply to any of the following:

Expected Or Intended Injury	"Personal injury" which is expected or intended by or at the direction of an "insured" with the knowledge or reasonable expectation that the act would violate the rights of another or would inflict "personal injury". This exclusion applies even if the resulting "personal injury" is of a different kind, quality or degree than initially expected or intended or is sustained by a different person, entity, real or personal property, than initially expected or intended.
Oral, Written Or Electronic Publication	"Personal injury" arising out of oral, written or electronic publication of material, if done by or at the direction of an "insured" with knowledge its falsity. This exclusion also applies to "personal injury" arising out of oral, written or electronic publication of material whose first publication took place before the beginning of the policy period.

Illegal Or Criminal Acts	"Personal injury" arising out of any illegal or criminal act performed by, at the direction of, or in conspiracy with any "insured". This exclusion applies regardless of whether the insured is charged with a crime.
Contractual Liability	"Personal injury" arising out of liability assumed by an "insured" under any contract or agreement. This exclusion does not apply to any indemnity obligation assumed by an "insured" under a written contract directly relating to the ownership maintenance or use of the premises.
Employment By An "Insured"	"Personal injury" sustained by any person as a result of an offense directly or indirectly related to the employment of this person by an "insured".
"Business"	"Personal Injury" arising out of or in connection with: 1. A "business" engaged in by an "insured" or conducted from an "insured location"; or 2. The rental or holding for rental of any part of the "insured location" by an "insured", regardless of the total annual compensation; whether or not the "business" is owned or operated by an "insured" or employs an "insured". This exclusion applies but is not limited to an act or omission, regardless, of its nature or circumstance, involving a service or duty rendered, promised, owed, or implied to be provided because of the nature of the "business". However, this exclusion does not apply to: 1. The rental or holding for rental of part of the "residence premises" for sole use as a residence to no more than two roomers or boarders, if disclosed on the application; or 2. An "insured" under the age of 21 years involved in a part-time or occasional, self-employed "business" with no employees.
Civic Or Public Activities	"Personal injury" arising out of civic or public activities performed for pay by an "insured".
"Personal Injury" To Any "Insured"	"Personal injury" to any "insured", as defined under Definitions. This exclusion applies to any claim or lawsuit brought against any "insured" to repay or share damages with another person who may be obligated to pay damages because of "personal injury" to an "insured".
"Fungi", Wet Or Dry Rot, Or Bacteria	"Personal injury" arising directly or indirectly, in whole or in part, out of the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, or presence of any "fungi", wet or dry rot, or bacteria. We do not cover any loss, cost or expense arising out of any: 1. Request, demand or order that an "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, pollutants, "fungi", wet or dry rot, or bacteria; or 2. Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, clean up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of pollutants, "fungi", wet or dry rot, or bacteria.
Electronic Forums	"Personal injury" arising out of chat rooms, bulletin boards, gripe sites, social networking sites, dating sites, or any other electronic forums.

With respect to the coverage provided under this endorsement, **SECTION II – ADDITIONAL COVERAGES**, Item **Loss Assessment** is replaced by the following:

Loss Assessment	We will pay up to \$1,000 for your share of loss assessment charged against you, as an owner or tenant of the "residence premises", during the policy period by a corporation or association of property owners, when the assessment is made as a result of "personal injury" not excluded under this endorsement.
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We do not cover assessments charged against you or a corporation or association of property owners by any governmental body.

Regardless of the number of assessments, the limit of \$1,000 is the most we will pay for loss arising out of "personal injury".

Under **SECTION II – CONDITIONS**, Item **Policy Period** does not apply and Items **Limit of Liability, What Must Be Done After A Loss**, and **Severability of Insurance** are replaced by the following:

Limit Of Liability

Our total liability under "Personal Injury" Coverage for all damages resulting from any one offense will not be more than the Coverage E limit of liability shown in the Declarations. This limit is the same regardless of the number of "insureds", claims made or suits brought.

What Must Be Done After A Loss

In case of an offense, you or another "insured" will perform the following duties that apply. We have no duty to provide coverage under this policy if your failure to comply with the following duties is prejudicial to us. You will help us by seeing that these duties are performed:

1. Give written notice to us or our agent as soon as is practical, which sets forth:
 - a. The identity of the policy and the "named insured" shown in the Declarations;
 - b. Reasonably available information on the time, place and circumstances of the offense; and
 - c. Names and addresses of any claimants and witnesses;
2. Cooperate with us in the investigation, settlement or defense of any claim or suit;
3. Promptly forward to us every notice, demand, summons or other process relating to the offense;
4. At our request, help us:
 - a. To make settlement;
 - b. To enforce any right of contribution or indemnity against any person or organization who may be liable to an "insured";
 - c. With the conduct of suits and attend hearings and trials; and
 - d. To secure and give evidence and obtain the attendance of witnesses;
5. No "insured" shall, except at such "insured's" own cost, voluntarily make payment, assume obligation or incur expense other than for first aid to others at the time of the "personal injury".

Severability Of Insurance

This insurance applies separately to each "insured". This condition will not increase our limit of liability for any one offense.

All other provisions of your policy apply.

Premises Alarm or Fire Protection System

We acknowledge the installation of a monitored alarm system and/or an automatic sprinkler system, approved by us, on the "residence premises". In exchange for a premium credit, you agree to maintain the system(s), in working order, and promptly notify us of any change, including removal, made to the system(s).

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Progressive Home & Auto Bundle Package

The following provision applies to your Progressive Home Policy when bundled with your Progressive Auto Policy:

**Single Deductible
Advantage**

If a single event causes a loss for which coverage applies under both your Progressive Auto and Homeowners policies, your Homeowners Policy deductible will be reduced by the amount of your Auto Policy deductible applied to the loss, and may be issued to you in the form of a reimbursement check. The amount of this reduction shall not exceed the Homeowners Policy deductible. For the Single Deductible Advantage provision to apply, a claim must be reported under both policies.

All other provisions of your policy apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Personal Property Replacement Cost Loss Settlement

For an additional premium, we will pay the full replacement cost of repair or replacement for covered losses to personal property, carpeting, household appliances, awnings, outdoor antennas and outdoor equipment, subject to all policy provisions.

Ineligible Property For Replacement Cost Loss Settlement

Property listed below is not eligible for loss settlement at replacement cost. Any loss will be settled at "actual cash value" at the time of loss but not more than the amount required to repair or replace the property.

1. Jewelry that is not separately described and specifically insured in this policy.
2. Antiques, fine arts, paintings and similar articles of rarity or antiquity, which cannot be replaced.
3. Memorabilia, souvenirs, collectors' items and similar articles whose age or history contribute to their value.
4. Articles not maintained in good or workable condition.
5. Articles that are outdated or obsolete and are stored or not being used.

Replacement Cost Loss Settlement Conditions

The following loss settlement condition applies to all covered property not listed above in Ineligible Property for Replacement Cost Settlement.

1. We will pay no more than the least of the following amounts:
 - a. Replacement cost at the time of loss without deduction for depreciation;
 - b. The full cost of repair at the time of loss;
 - c. The limit of liability that applies to Coverage C, if applicable;
 - d. Any applicable special limits of liability stated in this policy; or
 - e. For loss to any separately described and specifically insured item, the limit of liability that applies to the item.
2. If the cost to repair or replace the property is more than \$500, we will pay no more than the "actual cash value" for the loss until the actual repair or replacement is complete.

You may elect to make a claim for loss on an "actual cash value" basis and subsequently make claim for any additional replacement cost. However, any claim for replacement cost must be made within 180 days after the date of loss.

All other provisions of your policy apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Water Back-Up and Sump Discharge or Overflow

Under SECTION I – PROPERTY COVERAGES, ADDITIONAL COVERAGES the following is added:

Water Back-Up And Sump Discharge Or Overflow

We will pay up to the limit of liability shown in the Declarations for direct physical loss, not caused by an “insured’s” negligence, to property covered under Section I caused by water or any other substance, which:

1. Backs up through sewers or drains; or
2. Overflows or is discharged from a:
 - a. Sump, sump pump; or
 - b. Related equipment;

even if the overflow or discharge is the result of mechanical breakdown. This Additional Coverage does not apply to the direct physical loss of the sump pump or related equipment, which is the result of mechanical breakdown.

This coverage does not increase the limits of liability for Coverages A, B, C or D stated in the Declarations.

Section I – Perils Insured Against

With respect to the coverage described above under Water Back-Up And Sump Discharge or Overflow above:

1. In Form ASI HOH, under Section I – Perils Insured Against; Coverage A – Dwelling And Coverage B – Other Structures; Paragraph 3.g.;
2. In Form ASI HOS, under Section I – Perils Insured Against; Coverage A – Dwelling A, Coverage B – Other Structures, And Coverage C – Personal Property; Paragraph 2.f.; and
3. In Endorsement ASI HO SPC, Paragraph 2.j.(2)

is deleted and replaced by the following:

Latent defect, inherent vice, or any quality in property that causes it to damage or destroy itself;

Special Deductible

The following replaces any other deductible provision in this policy with respect to loss covered under this endorsement.

We will pay only that part of the total of all loss payable under Section I that exceeds your deductible shown on the declarations page or \$1,000, whichever is greater. No other deductible applies to this coverage. This deductible does not apply with respect to Coverage D – Loss of Use.

Under SECTION I – EXCLUSIONS, Water Damage is replaced by the following:

Water Damage

Water Damage means:

1. Flood, surface water, waves, including tidal wave and tsunamis, tides, tidal water, overflow of any body of water, or spray from any of these, all whether or not driven by wind, including storm surge;
2. Water, water-borne material, sewage or any other substance which:
 - a. Backs up through sewers or drains; or
 - b. Overflows or is discharged from a sump, sump pump or related equipment;

as a direct or indirect result of flood;

3. Water, water-borne material, sewage or any other substance below the surface of the ground, including water or any other substance which exerts pressure on or flows, seeps or leaks through a building, sidewalk, driveway, patio, foundation, swimming pool or other structure; or
4. Water-borne material carried or otherwise moved by any of the water referred to in Paragraphs 1. through 3. of this Exclusion.

caused by or resulting from human or animal forces or any act of nature.

This Exclusion applies to, but is not limited to, escape, overflow or discharge, for any reason, of water water-borne material, sewage or any other substance from a dam, levee, seawall or any other boundary or containment system.

Direct loss by fire, explosion or theft resulting from any of the above, in Paragraphs 1. through 4., is covered.

All other provisions of this policy apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Windstorm or Hail Exterior Paint or Waterproofing Exclusion

Under SECTION I – EXCLUSIONS the following Item is added:

**Windstorm Or Hail
Exterior Paint Or
Waterproofing**

We do not cover any loss caused by windstorm or hail to paint or waterproofing material applied to the exterior of the building or structure unless the same portion of the building or structure sustains other covered damage during the same storm event. Such coverage only applies if the damage is caused by a Peril Insured Against that is not otherwise excluded.

All other provisions of your policy apply.

